

Title: The “snipers’ massacre” on the Maidan in Ukraine

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POLITICS | RESEARCH ARTICLE

The “snipers’ massacre” on the Maidan in Ukraine

Ivan Katchanovski^{1*}

Abstract: This study analyzes which party of the conflict was involved in the 2014 Maidan massacre in Ukraine. The massacre of Maidan protesters and the police on 20 February 2014 was a turning point in Ukrainian politics. This mass killing led to the overthrow of the Ukrainian government and spiraled into a civil war in Donbas, Russian military intervention in Crimea and Donbas, the Russian annexation of Crimea, and conflicts between Ukraine and Russia and between the West and Russia that Russia drastically escalated by launching its illegal invasion of Ukraine in February 2022. This article proposes and tests the moral hazard theory of the state repression backfire. Content analysis of synchronized videos, testimonies by several hundred witnesses, confessions by 14 self-admitted members of Maidan sniper groups, and bullet hole locations show that both the police and protesters were massacred by Maidan snipers located in Maidan-controlled buildings and areas. Content analysis of synchronized videos revealed that the specific time and direction of shooting by Berkut policemen, who were charged with the massacre, did not coincide with the killing of specific protesters. Testimonies by the absolute majority of wounded protesters and some 100 witnesses and forensic examinations by ballistic and medical experts for the Maidan massacre trial and investigation in Ukraine corroborate this. The article shows that the false-flag massacre was

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rationally organized and carried out with the involvement of oligarchic and far-right elements of the Maidan opposition to overthrow the incumbent government in Ukraine.

Subjects: Central Asian, Russian & Eastern European Studies; European Studies; Comparative Politics

Keywords: Ukraine; political violence; conflict; Maidan; Euromaidan; massacre; state repression

Il est défendu de tuer; tout meurtrier est puni, à moins qu'il n'ait tué en grande compagnie, et au son des trompettes; c'est la règle. [It is forbidden to kill; therefore all murderers are punished unless they kill in large numbers and to the sound of trumpets; it is the rule].¹ Voltaire

1. Introduction and research question

The Maidan massacre of the protesters and the police during the mass “Euromaidan” protests on 20 February 2014 in Ukraine is a crucial case of political violence. This resulted in the overthrow of the semi-democratic and corrupt Yanukovich government and was a tipping point in the Ukrainian conflict. This mass killing of the protesters and mass shooting of the police that preceded it led to the overthrow of the pro-Russian government of Viktor Yanukovich and gave the start of a civil war in Donbas, Russia’s military intervention in Crimea and Donbas, the Russian annexation of Crimea, and an interstate conflict between the West and Russia and between Ukraine and Russia that Russia drastically escalated by launching its illegal invasion of Ukraine on 24 February 2022. The Ukraine war also escalated into a proxy war between the West and Russia (see Black & Johns, 2015; Hahn, 2018; Katchanovski, 2015, 2016a, 2016b, 2022; Kudelia, 2016; Sakwa, 2015).²

This study uses the theory of rational choice, a Weberian theory of instrumental rationality, and state repression backfire theories and analyzes a variety of evidence to determine whether the Yanukovich government, the Maidan opposition, or any “third force” was involved in the mass killing of protesters and the police. The research question is which party or parties of the conflict massacred Maidan protesters and the police.

The dominant narrative promoted by the governments and the media in Ukraine and the West attributed the Maidan massacre of the protesters on 20 February 2014 to the Yanukovich government forces and generally disregarded killings of the police on the same day and in the same place (see Boyd-Barrett, 2016).³ The Prosecutor General Office of Ukraine (GPU) charged members of the special Berkut police company with the killing and attempted killing of the protesters on 20 February 2014 (Katchanovski, 2023).

Videos of killings and woundings of many Maidan protesters and shooting by the Berkut special company, along with videos and photos of Omega unit snipers of the Internal Troops and audio recordings of Alfa unit snipers of the Security Service of Ukraine (SBU), were presented by the government and the media in Ukraine and the West as definite evidence that the police massacred the protesters. Statements, media interviews, and reports by numerous Maidan protesters and Ukrainian and Western journalists have attributed the massacre to government snipers on the ground and in various surrounding buildings. Similarly, numerous bullet holes in trees, electric poles, and the Hotel Ukraina walls from the side of the Berkut and government snipers were presented by the prosecution and the media as clear evidence that they shot protesters.

In contrast to the dominant narrative, Monitor, a German TV program, presented evidence of its investigation, showing that snipers were based in Hotel Ukraina and that the Ukrainian government investigation was manipulated.⁴ The BBC investigation produced similar findings and reported that snipers located in the Music Conservatory shot the police.⁵

2. Previous studies

Despite its intrinsic significance and major consequences, the Maidan massacre has been the central subject of only a few academic studies. Most of them found that the far-right and oligarchic elements of the Maidan opposition, in particular the Right Sector and Svoboda, were involved in the false-flag Maidan massacre of the protesters and the police (see Hahn, 2018; Katchanovski, 2016a, 2020, 2023). The Maidan massacre trial and investigation in Ukraine revealed various pieces of evidence, such as testimonies of the absolute majority of wounded Maidan protesters, close to 100 prosecution and defense witnesses, ballistic and medical forensic examinations, and videos, which showed that the Maidan protesters and the police were massacred by snipers located in Maidan-controlled buildings. As part of the cover-up, no one was convicted or under arrest for the massacre of the protesters and the police (see Katchanovski, 2023).

Ishchenko (2016, 2020) and Ishchenko and Zhuravlev (2021), based on an analysis of a database of major protest events during EuroMaidan, found significant involvement of the far right in violence but did not specifically examine the Maidan massacre. Several other academic studies have suggested that the Maidan massacre was perpetrated with the involvement of the far right (see, for example, Bandeira (2019, pp. 206–207); Cohen (2018) (Lane, 2016; Mandel, 2016; Sakwa, 2015); pp. 90–92). Another study corroborated the findings of the far-right involvement in the massacre of the police and argued that the violence was initiated by the Maidan protesters, who killed and wounded many policemen and maintained, based on secondary sources, that the Berkut police then in response massacred the protesters (Kudelia, 2018).

In contrast, some studies of the “Euromaidan” attributed the massacre of the protesters to the Berkut anti-riot police or snipers from the Security Service of Ukraine and Internal Troops (see, for example, Marples & Mills, 2015). However, they were not based on a comprehensive analysis of this crucial case of political violence and uncritically accepted claims by the Maidan politicians and the Ukrainian and Western media that the government snipers from SBU Alfa and Internal Troops Omega units and/or the special Berkut company perpetrated the massacre of the protesters on the Yanukovich orders.

Some other studies, which briefly examined the Maidan massacre, relied on a model of killing three Maidan protesters. The SITU model was produced by a New York architecture company for Maidan lawyers, but the Maidan massacre trial refused to admit it as evidence. This model misrepresented the directions of the gunshots by misrepresenting the locations of wounds of these three protesters compared to their wound locations in forensic medical examinations by Ukrainian government experts for the Maidan massacre investigation and the trial (see Katchanovski, 2023).

Previous studies did not comprehensively and systematically examine crucial evidence of the Maidan massacre, such as videos, photos, audio recordings, interviews, and statements by Maidan protesters, journalists, government snipers, and Berkut police members in the media and social media. This study fills this gap and analyzes the evidence of this massacre systematically and comprehensively.

3. Theoretical framework

This study relies on the theoretical framework of rational choice and the Weberian theory of rational action and develops the moral hazard theory of state repression backfire. Rational choice theory views people as acting in a calculated and self-interested manner, and this theory was applied for various specific political events (see, for example, Bates et al., 1998). However, rational choice assumes that people have perfect information to make such decisions and that all of their actions are rational. In contrast, the Weberian theory of social action regards the instrumentally rational type of action as an ideal type of action alongside value-rational, traditional, and affectual types of action, and such actions can be interpreted and understood by scholars. The

instrumentally rational type of action involves “the attainment of the actor’s own rationally pursued and calculated ends” (Weber, 1978, pp. 24–26).

While rational choice treats all actions as rational and calculated, Weber recognized other types of actions, such as affective or emotional (Weber, 1978, p. 25). Irrational actions, particularly emotions and mistakes, can also occur during violent conflicts and revolutionary events (see Beissinger, 2022). For example, an examination of the Maidan massacre by a pro-Maidan journalist emphasized feelings of hate between protesters and the police (Koshkina, 2015).

The widely accepted narrative of the massacre appears irrational from both the rational choice and Weberian instrumentally rational action perspectives. Yanukovych and his associates lost all their power and much of their wealth and fled from Ukraine as a result of this mass killing, since this massacre of protesters undermined his and his government’s legitimacy, even among the many deputies of the Party of Regions who joined the opposition and voted to remove him from the presidency. The same problem concerns the irrational retreat of the police from their position at Maidan and the mass killing of the protesters by the police. Since Berkut and the internal troop units had nonlethal weapons to stop unarmed protesters, it was more rational to use live ammunition or snipers to deliver warning shots or target armed protesters and the Maidan leaders, rather than to kill advancing protesters. Similarly, the repeated attempts by protesters to advance on the very small and relatively unimportant part of Instytutska Street also seem irrational and hard to explain from these theoretical perspectives, because a large number of people going under constant fire would amount to an irrational collective mass suicidal action. While some government leaders, policemen, and protesters might have been driven by value-rational actions, such as being motivated by ideology, affectual actions based on emotions, or miscalculations in their instrumentally rational actions, it would be anomalous for all different actors to do this at the same time.

The dominant narrative promoted by the Ukrainian governments and, with some exceptions, the Ukrainian and Western media concerning the Maidan massacre is consistent with state repression backfire theories. State repression backfire means that attempts to use violence to suppress protests instead produce a backlash against the state in response to such violence. This means defeating vastly superior state forces by peaceful protesters in an asymmetric conflict (see, for example, Anisin, 2014, 2019; Chenoweth & Stephan, 2011; Hess & Martin, 2006; Martin, 2007; Sharp, 1973).

The backfire requires that state repression be perceived as completely unjustifiable, excessive, or disproportional, and that information about state repression be communicated to the public and other actors, such as foreign governments (see Martin, 2007). Examples of such state repression backfires include the Bloody Sunday massacre of anti-government protesters by the police, which spurred the Russian Revolution in 1905, and the Jallianwala Bagh (Amritsar) massacre of pro-independence protesters by the British Indian Army, which spurred the pro-independence movement in India led by Mahatma Gandhi (see Anisin, 2014, 2019).

State repression backfire theories suggest that the Maidan massacre of unarmed anti-government protesters in Ukraine was an extreme form of state repression by the Yanukovych government and its forces and was aimed at suppressing anti-government mass protests on the Maidan. However, the state repression of peaceful Maidan protesters by means of their unprovoked massacre supposedly backfired after it was highly publicized by media and social media in Ukraine and the West. The mass killing of the protesters ostensibly produced a massive public outrage and a backlash against the incumbent government, delegitimizing its use of force and leading to Yanukovych and his government leaders, who were blamed for the massacre of protesters, fleeing from Ukraine to avoid prosecution or other retaliation to order this mass killing.

State repression backfire also implies that the incumbent government has rational incentives to cover state violence and those responsible for such violence to prevent or minimize the backfire. If

the Yanukovich government, its police and security forces, or any pro-Yanukovich “third force” did perpetrate this mass killing one would expect cover-up by them and speedy and effective investigations and the prosecutions by Maidan governments. It was in the rational self-interest of the Maidan governments, whose legitimacy was ultimately based on this massacre, to conduct effective and speedy investigations and prosecutions of this one of the most documented cases of mass killings in the history of the world.

However, previous studies have failed to consider that there is a moral hazard in such mechanisms of state repression backfire. The mechanisms of the repression backfire can be exploited by opposition or pro-opposition actors in their own self-interest based on rational calculations of expected costs and benefits. The provocation of government violence against protesters or the covert staging of such violence and attributing it to state repression can be rational from the perspective of theories of rational choice or Weberian instrumentally rational actions for actors driven by self-interest and not concerned with ethical considerations.

The moral hazard contains an incentive for the opposition to produce a transformative event that could not only create significant media coverage and public outcry against the incumbent government inside and outside of the country but also dramatically increase popular mobilization and domestic and international support, eventually resulting in concessions or regime transition. Provoked or staged violence by pro-opposition actors has the power to backfire to a government by undermining its legitimacy and its use of security, police, and military forces, thus defeating them in an asymmetric conflict. This greatly increases the chances that government police, security, and military forces and high-ranking commanders, officials, and politicians will defect from the incumbent government. Such provocation of state violence or staging of false flag violence means a very high-stake and high-risk game. The incentive to minimize risk in case of failure and detection of exposure implies that the use of provocation and staged false flag violence would be exceptional and rare, and would be done covertly and with subsequent cover-up.

The moral hazard of the state repression backfire in the case of the Maidan massacre would mean that certain elements of the oligarchic and far-right Maidan opposition provoked the mass killing of the protesters, for instance by killing and wounding the police, or covertly staged the mass killing of the protesters themselves in order to blame the violence on the incumbent government leaders and their security or police forces and seize power in Ukraine as a result of this transformative event. This would also mean very strong incentives for the Maidan governments to cover such provocation or staged violence and stone wall investigations of mass killing on the Maidan.

There is evidence of such precedent of provoked and staged violence in Romania during the anti-communist “revolution” in 1989, which became a transformative event in Romanian history. The former Romanian president, prime-minister, and a number of other leaders of the “revolution” were charged by Romanian prosecutors in 2018 and 2019 with crimes against humanity for using deliberate disinformation and diversion right after they seized power in 1989 to provoke false flag mass killings that resulted in 863 deaths. The prosecution charges state that they used such orchestrated killings and other violence to legitimize their power and execute the Romanian communist government and party leader Ceausescu for these mass killings in a mock trial that they helped to stage. These and other leaders of the new Romanian government and military commanders reportedly provoked and staged the killings of supporters of the new government by other supporters of the new government, including in the military, by literally using false flags, deliberate diversions, and misinformation that Ceausescu snipers from the security services and his other loyalists, called “terrorists,” were killing supporters of the new government.⁶

A similar state repression backfire can involve executions, assassinations, poisoning, arrests, beatings, or torture by opposition leaders, activists, and protesters. However, such repression also involves moral hazard. For instance, videos and testimonies of various Maidan activists and

eyewitnesses show that violent dispersal of Maidan protesters on 30 November 2013 was deliberately provoked by Maidan opposition leaders, the far-right Right Sector, and the head of the Yanukovich administration. His TV channel filmed and publicized it along with other Ukrainian and foreign TV and other media as unprovoked police violence against students on the Yanukovich order. The orchestrated police violence was used to trigger mass Maidan protests against Yanukovich and his government (see Katchanovski, 2020).

There is a similar moral hazard in interstate violence and conflict backfires. Cases of false-flag violence included violent attacks staged by Nazi Germany and disguised as Polish attacks in the German territory, for instance, in Gleiwitz. They were used by Nazi Germany as a pretext to invade Poland and start World War II and for propaganda purposes to justify this invasion. A false flag shelling with reported casualties by Soviet border guards near the village of Mainila was used by the Soviet Union as a casus belli for a war with Finland in 1939. This shelling was staged by Soviet forces on orders of Soviet leadership and was falsely blamed on shelling by Finland to create a pretext for the war (Spencer, 2018). Similarly, there is a moral hazard in humanitarian intervention that involves perverse incentives for political actors to engage in risky and fraudulent actions against their own state to elicit violent state repression and humanitarian intervention by foreign states in response (Kuperman, 2008).

The moral hazard theory of state repression backfire, rational choice, and Weberian rationality-based analysis can be applied not only to the analysis of the Maidan massacre in Ukraine. Such a theoretical framework can also be used to conduct theory-based and evidence-based scholarly analyses of possible cases of false-flag violence in Ukraine and other countries.

4. Data and methodology

This study combines content analysis of all publicly available videos, photos, and audio recordings of the Maidan massacre on 20 February in English, Ukrainian, Russian, Polish, and other languages with an analysis of several hundred testimonies concerning this massacre based on qualitative interview methodology. The manifest and latent content analysis covers over 2,000 videos and recordings of live Internet and TV broadcasts of the massacre in nearly 50 countries, news reports, and social media posts by 120 journalists covering the massacre from Kyiv, more than 6,000 photos, and close to 30 gigabytes of publicly available radio intercepts of snipers and commanders of the Security Service of Ukraine and Internal Troops.

Five online video compilations created for this study included brief relevant segments of videos of the massacre and their sources (Video A, B, C, D, E). They were posted on a specially created YouTube account. The links to access the videos are provided in the endnote and in the supplementary files section of this study.⁷

Numerous videos of the massacre were synchronized based on the matching visual and audio content of videos, in particular, speeches from the Maidan stage, and on time-stamped video recordings, such as recordings of live TV broadcasts, Internet streaming, and security cameras. These video appendixes also contain maps that show the locations of the government forces and buildings with snipers, locations, and times of killing and wounding of specific Maidan protesters and policemen. The locations and positions of the snipers are determined based on their videos, photos, and testimonies of wounded protesters and witnesses. Video D and the maps show overall approximate directions of shooting of specific Maidan protesters based on determination by government forensic ballistic experts for the official investigation, positions of protesters in videos at the time of their shooting, and testimonies of wounded protesters and witnesses. Such methods of determining the locations of the shooters of specific protesters were used by government forensic experts for government investigations and by judges and lawyers during the Maidan massacre trial.

The timing and video synchronization in these video compilations, including the times and locations of killings and wounding of the specific Maidan protesters, have some minor exceptions

consistent with the time-stamped compilations of videos of the massacre by the SITU architectural company and Talionis group, which are based on their computer synchronizations. The Talionis video compilation of the Maidan massacre was presented as evidence by the prosecution and Maidan lawyers during the trial.⁸ This compilation was produced by an anonymous group with funding from the Prosecutor's General Office.⁹ However, both SITU and Talion omitted the initial part of the massacre on 20 February, in particular, the killing and wounding of the police, and many videos regarding Maidan snipers that were included in the present study.

This study analyzed interviews and statements by several hundred witnesses in media and social media. Most of these testimonies are by eyewitnesses, mostly Maidan protesters, and Western and Ukrainian journalists. Testimonies of indirect witnesses concerning Maidan snipers are primarily Maidan protesters, politicians, and pro-Maidan journalists. Such "statements against interest" relayed by indirect witnesses are accepted in criminal law and trials in the US, Canada, and other Western countries (see Martin, 1994). Since it would be in rational self-interest for Berkut officers and the Yanukovych government officials, who are charged with the Maidan massacre, to deny their responsibility whether they are guilty or not, the analysis does not rely on their testimonies.

This article also employs field research and photos by the author at the site of the Maidan massacre in downtown Kyiv in July 2014, and numerous visits before the massacre to the Maidan and most surrounding buildings, such as the Hotel Ukraina, the Main Post Office, Zhovtnevyi Palace, Dnipro Hotel, and Kozatsky Hotel. A multimethod methodology combining content analysis of videos, audio recordings, and photos of the massacre with analysis of qualitative interviews with witnesses makes the case study and its findings much more reliable than typical scholarly studies. Specific testimonies concerning specific events, in particular, killings and wounding of specific protesters and locations of the shooters, were corroborated by other evidence, such as other testimonies, video and audio recordings of these events, and results of forensic medical and ballistic examinations by government experts of the same specific events. The same concerns other types of evidence such as videos. In addition, the evidence is evaluated using other standard criteria in scholarly methodology, such as validity, specifically, face validity and replication.

This study also introduced a digital event reconstruction methodology for scholarly research on political violence. Digital event reconstruction methodology, in particular, of mass killings and other cases of political violence, is used in international criminal justice and by non-academic researchers such as Bellingcat (see Zarmsky, 2021). It is revealing that Bellingcat did not present an analysis of this massacre despite stating in February 2015 that they were working on such analysis.¹⁰

5. Content analysis and reconstruction of the Maidan massacre

The content analysis of synchronized videos, photos, audio recordings, and media and social media reports shows that the cease-fire agreement was signed by then-President Yanukovych and leaders of the Maidan opposition parties around midnight on 20 February 2014 was broken early in the morning of the day. The Berkut and Internal Troops units were then in standoff with the protesters on the Maidan (the Independence Square) in downtown Kyiv (Video A).

STB and 112 Ukraine TV videos show snipers covertly shooting from the Music Conservatory shortly before 8:00. A BBC investigation included photos by a Ukrainian photographer showing several Maidan snipers armed with hunting rifles and either a Kalashnikov assault rifle or its hunting version inside the Music Conservatory shortly after 8:00am. A recording of a live 112 Ukraine TV broadcast at 8:00 am referred to shooters at the conservatory. Another live report at 8:37 am states that shooters from the conservatory wounded at least five policemen on the Maidan. A video shows a Berkut policeman facing the conservatory and shouting of pellets hitting the Berkut police on the Maidan, and that the deadly gunfire is from above (see Video A). In their

radio communications, the Internal Troops units, stationed at Maidan, made urgent requests for ambulances at 8:08 am.¹¹

A speaker on the Maidan stage announced circa 8:20 am that Maidan activists had just caught a sniper, and that this sniper was taken to the Maidan headquarters. A statement from the Fatherland Party on 20 February 2014 also said that the Maidan protesters were shot from the roof of the Music Conservatory by government forces and that the shooting stopped after the Maidan activists climbed to the roof.¹² Since it would have been in rational self-interest for the Maidan leadership and protesters to produce videos, photos, documents, firearms, or other evidence proving that these were government snipers or unfriendly third-force snipers, the absence of such evidence indicates that they were not such snipers. Both these statements suggest that the Maidan forces were capable of neutralizing snipers and that Maidan leaders and activists tried to publicly present shooting of the Maidan protesters by snipers from the Maidan-controlled buildings, such as the Music Conservatory, as actions by the government snipers.

Videos also show that the conservatory was located in Maidan-controlled territory, with many protesters filmed near its entrance and the Maida-facing parts of the building. A Maidan stage speaker asked about 8:00 am “dear friends” in the conservatory to suppress the fire on its balcony. A special Maidan company commander and three of its members admitted in their Ukrainian media and BBC interviews and during interrogation that their unit was based on the conservatory building at the time of the massacre and shot at the police.¹³

A GPU investigation confirmed these public admissions. The commander and many of its members, whose list was leaked from the investigation, were members or had other links to far-right organizations, such as the Congress of Ukrainian Nationalists, the Right Sector, and Svoboda, and were primarily from Galicia in Western Ukraine.¹⁴

A not-broadcast CNN video footage shows approximately 8:20 am, the commander and members of the special armed Maidan company moving with their firearms to the Maidan barricade, taking positions behind the Maidan barricade facing the police and the Internal Troops on the Maidan while using unarmed Maidan protesters as human shields. Their appearance was followed by sounds of many gunshots. At the same exact place and around the same time, members of the special-armed Maidan company were filmed, then shooting from hunting rifles in the direction of the Berkut police and Internal Troops facing them on the Maidan. A recording of a live broadcast also showed one member of the special armed Maidan company giving then to another on the same barricade a Kalashnikov-type firearm (Video A, 05:03).

Similarly, 24 TV channels reported shortly before 8:00 am that there was shooting from Hotel Ukraina, that there were shots by pellets and snipers, and that three shot protesters had been evacuated. A video by a Maidan protester shows one of the casualties among protesters being evacuated from Maidan, and this is followed by a warning from the Maidan stage about a sniper in Hotel Ukraina. At a similar time, a speaker on the Maidan stage said that someone was shooting from Hotel Ukraina. He asked “our guys, who had been in the hotel until recently,” to check this (Video A, 00:01:19). These videos provide evidence that snipers in Hotel Ukraina shot the Maidan protesters, and that the Maidan forces controlled the inside of this hotel and had the ability to report or neutralize any snipers there if they were from government forces or any third force.

There is also evidence of snipers and spotters in other Maidan-controlled buildings around the same time frame. For instance, a warning from the Maidan stage about snipers on the surrounding roofs was made at 8:45am. In a video, a protester said that there was a sniper at the top of Kozatsky Hotel (Video A, 07:50).

The synchronized videos show how Internal Troops and the Berkut were shot, fell to the ground, and evacuated in the same area of the Independence Square (Maidan) around the same time. In

their radio communications, the internal troop units on the Maidan made urgent requests for a life support vehicle at 8:21 am, an ambulance at 8:29 am, two ambulances at 8:39 am, and five ambulances at 8:46 am.¹⁵ This timing is consistent with the casualties of police and Internal Troops. Various media reports, for instance, by correspondents of several TV channels in the Maidan area, and a statement by the Internal Affairs Ministry on the morning of 20 February stated that the police units on the Maidan were shot with live ammunition from the Music Conservatory.

The Berkut anti-riot police and internal troop units, which were besieging, storming, and blocking the Maidan for almost three months, hastily abandoned their positions on the Maidan and fled between 8:50 am and 9:00 am. Videos and radio communications by the internal troop units contain urgent retreat orders at 8:49 am and 8:50 am.¹⁶ Large numbers of Berkut and Internal Troops servicemen fleeing the Maidan area at haste minutes before and after 9:00am. A Berkut officer stated during this retreat that the police came under live ammunition fire from Maidan “snipers” and that then snipers” appeared on the third floor from the top of the Hotel Ukraina. Several other fleeing Berkut and Internal Troop members and TV correspondents on the ground made similar statements (Video A).

Therefore, it was a rational explanation supported by various pieces of evidence that the government forces retreated because of the use of live ammunition by snipers in the Maidan-controlled buildings and areas and many casualties. There are no publicly available videos, photos, audio recordings, media, or social media reports at that time showing any evidence of possession and use or orders to use live ammunition and lethal firearms by Berkut and the Internal Troops on the Maidan during that time period. Various videos show that they were armed with and used anti-riot weapons, such as pump shotguns, rubber bullets, rubber pellets, and stun grenades along with water cannons. There was also no evidence of government or any third force snipers in these Maidan-controlled buildings or areas in government-controlled buildings and open areas on the Maidan or its vicinities during this time.

Similarly, there are no publicly available videos, photos, audio recordings, media, and social media reports at that time showing any evidence of the police or any other government units, including snipers, shooting with live ammunition at the snipers in the Maidan-controlled buildings, and on the Maidan barricade in response to their shooting of the Berkut police and the Internal Troops on the Maidan before their retreat. The absence of such retaliation, which would have been in the police’s rational self-interest, is another indicator of the absence of such live ammunition and firearms at that time. Since there is no such evidence of snipers in the Music Conservatory, Hotel Ukraina, Kozatsky Hotel, and Maidan barricade shooting at each other, this suggests that they are not hostile but are linked to the Maidan.

The content analysis suggests that both the police and the Maidan protesters on the Maidan were shot in the early morning by snipers in the Maidan-controlled buildings and areas, such as Hotel Ukraina and the Music Conservatory, and that the police and Internal Troops then retreated and fled from the Maidan as a result of the casualties among their units. These findings are corroborated in the following sections by numerous testimonies of wounded Maidan protesters and Berkut policemen, commanders of government sniper units, eyewitnesses among the Maidan protesters and journalists, government investigations, forensic examinations by government experts, and cover-up and stonewalling of investigations and prosecutions of these snipers who killed and wounded the police and protesters during this time frame.

For instance, the Prosecutor General Office of Ukraine investigation determined that one Berkut officer was killed on the Maidan from a Music Conservatory direction and two from Maidan barricades direction between 8:00 am and 9:10 am, two of which were shot from a Kalashnikov-based Saiga hunting carbine by a member of a special Maidan company. He earlier admitted in Ukrainian media interviews shooting the police from the Music Conservatory and Maidan

barricades, and killing two policemen from such a firearm.¹⁷ In addition, the government investigation determined that 39 policemen were wounded by firearms on the Maidan from 5:30 am until the police retreat, and that 10 Maidan protesters were wounded on the Maidan by live ammunition in the morning of 20 February before 9:00 am from sectors other than government-controlled, and nobody was charged for their wounding.

The synchronized video compilation shows that, following the retreat of the police unit crowds of protesters, the absolute majority of whom were unarmed, started around 8:50 a.m. to advance from their positions on the Maidan up Instytutska and Hrushevsky streets. Their advancement was guided by commands announced from the Maidan stage over loudspeakers. They relayed orders by Maidan leaders and company commanders of Maidan Self-Defense. Specifically, a Maidan announcer relayed orders for protesters to advance to Zhovtnevyi Palace heights and stay at these positions. This order for protesters was issued from the Maidan stage, even when the Berkut police briefly advanced to the Zhovtnevyi Palace area and started shooting (see Video A).

The synchronized and time-stamped videos show that three protesters were killed before about two dozen police officers from the special Berkut company first appeared from a bus and started shooting with Kalashnikovs and pump rifles a few minutes after 9:00am. This means that the special Berkut company policemen, who were charged with killing these three protesters, could not physically shoot them and that they were killed by someone else.

In contrast, the videos suggest that Maidan snipers were shooting protesters there at around the same time. A Polish TVP TV correspondent reported at 9:01 am right after these three protesters were killed near him that a sniper shooting both the police and protesters appeared. He pointed to Maidan in the Music Conservatory Direction. A warning was made from the Maidan stage at 9:04 am for protesters not to shoot other protesters in the back, several minutes after these three protesters were killed (see Video A, 13:05)

The content analysis of synchronized videos shows that about 15–20 members of the special Berkut company appeared on Instytutska Street near Maidan from a bus at 9:02 am and started shooting with pump rifles and AKMS (modified Kalashnikov assault rifles). The videos show that many Maidan protesters fall to the ground with bullet wounds in the same area within the same general timeframe. These videos were presented by the media, the prosecution, and the Maidan lawyers as definite proof that these Berkut policemen massacred Maidan protesters. These Berkut policemen were filmed in numerous videos and National Bank security cameras for nearly the entire period from their deployment to the end of the massacre.

However, the content analysis shows that the purpose of the Berkut company's brief advance was to enable a retreat of internal troop soldiers remaining in Zhovtnevyi Palace, whose main entrance was seized by the protesters a few minutes after 9:00am. The limited advance of two dozen members of the Berkut special company to Zhovtnevyi Palace and their swift retreat along with a large number of policemen can be seen in various videos. A rational way to accomplish this for Berkut members was not to kill the unarmed protesters, but to use live ammunition as warning shots or to shoot at Maidan snipers in surrounding buildings or at a small minority of the protesters, who were filmed shooting at the police or moving on the Maidan armed with hunting rifles, Kalashnikov-type firearms, and handguns. This Berkut Company was a special police unit that was created, trained, and armed to be used against violent and armed criminals and rioters. Synchronized videos show that Berkut gunshots from Kalashnikovs and their direction coincide with visible impacts on the ground or pavement before the protesters. There is no evidence that Berkut actions in this case were affective or emotional (see Video A).

The content analysis shows that specific times and directions of shooting by members of a Berkut unit of about 20 policemen, who are charged with their killings and attempted killing, and specific times of killings and wounding of specific Maidan protesters did not coincide in the

videos, which filmed both simultaneously, for example, in a long German ARD TV video and in synchronized videos.¹⁸ This crucial long ARD video, which like synchronized videos demonstrates visually that the Berkut policemen did not shoot at least the absolute majority of killed and wounded protesters, was not shown by this German public TV broadcaster. The Berkut policemen at the exact times of the killings and wounding of the absolute majority of these protesters are filmed standing, moving, taking cover behind barricades, not aiming their AKMs towards these protesters, and there is no visible gunshot smoke or recoil of their firearms. It was physically impossible to shoot them without aiming at their Kalashnikovs in the specific protesters and making gunshots at the same time when the protesters were seen falling to the ground when there were sounds of specific gunshots (see Video D).

For example, the content analysis of synchronized videos of killings of Ihor Dmytriv and Andrii Dyhdalovych and wounding of Sviatoslav Kolesnikov and Roman Kotliarevsky visually illustrates that the specific times of their shooting did not match the specific times of Berkut shooting in the same and/or other synchronized videos. The synchronized videos in both this study and the SITU model show no policemen or their firearms visible from behind the Berkut-manned barricade at the time of killing Dmytriv. They also show the same concerning the Berkut police and no signs of a gunshot, such as flash and recoil, of an Omega sniper behind the same barricade at the time of killing Dyhdalovych. A timestamped video showed that Berkut policemen behind a Berkut barricade were not shooting at all during Kolesnikov's wounding (see Video D).

Video D shows that, a few minutes before and after the wounding of Kolesnikov, a Berkut policemen covers a barricade, not shoots, with his AKM placed on the ground in a vertical position. The prosecution presented separately during the trial of these time-stamped videos of the Kolesnikov wounding and this policeman behind the barricade as proof that he shot the Maidan protester, even though the videos show the opposite when combined. He was one of the Berkut police officers who tried to massacre the protesters.

However, Video D shows that at the time of Kolesnikov wounding on the pedestrian bridge, protesters took cover under this bridge on Instytutska Street between the Hotel Ukraina and Zhovtnevyi Palace. They pointed out that at 9:23 am live ammunition fire at them and other protesters from the upper floor of the hotel. Synchronized videos show that several other protesters were killed, and many others wounded in the area around this time. Kolesnikov also testified during the on-site investigative experiment that he was wounded from the upper part of the Hotel Ukraina. Government ballistic experts reached the same conclusion based on the steep direction and location of bullet holes in a chair that Kolesnikov used to hide from snipers in the hotel (see Video D, 7:55).

Similarly, there are no Berkut policemen or any signs of a gunshot visible from the Maidan protesters facing the side of the truck barricade at the time of the wounding of Roman Kotliarevsky, a Maidan medic, in a German ARD TV video at 10:16 am. A National Bank security camera video, which is precisely synchronized with the German and CNN videos of his wounding based on the matching content and timestamps of the security camera video, shows that the Berkut police were hiding behind the truck barricade and did not even aim their Kalashnikovs in the direction of Kotliarevsky. The prosecution and Maidan victims' lawyers claimed during the trial that this Maidan medic was wounded by a Berkut policeman from this barricade. Kotliarevsky testified during an investigative experiment that he was wounded from the Bank Arkada because of the top-to-bottom direction of his wound and its location on the back of his right thigh. A wound X-ray showed that the bullet was at a steep angle. A government ballistic expert also determined that the fire sector was from Hotel Ukraina to Bank Arkada (see Video D).

The prosecution, Maidan victims' lawyers, and numerous media reports showed videos of Berkut shooting from the truck barricade as evidence that they killed almost half of the 49 protesters in front of them. However, the content analysis shows that Berkut physically could not shoot

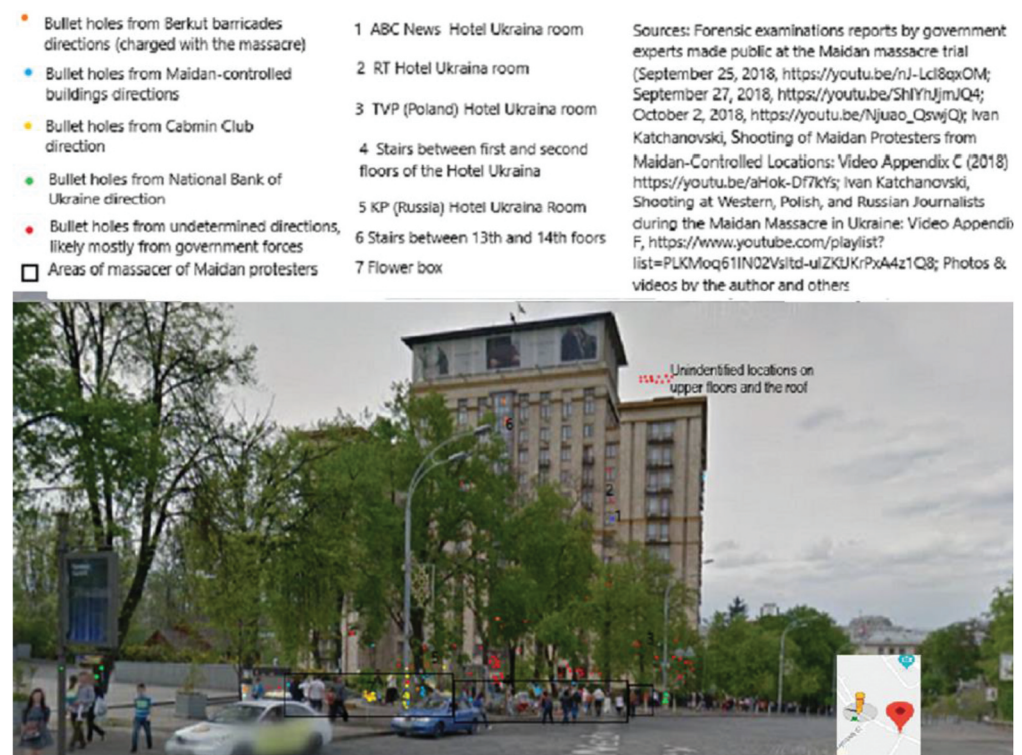
protesters from behind a truck barricade because they were blind spots below the Berkut line of fire from over the top of the truck body. Because the height and width of the MAZ truck were approximately three meters, it was physically impossible for Berkut policemen, who were entirely behind this truck or standing on the concrete pieces with only their heads and hands visible from the behind the truck barricade to shoot protesters below in front of this truck. The latter could only shoot parallel to the top of the truck or above (see Video A & D). This is consistent with bullet hole locations in Figure 1.

Similarly, the videos visually show that it was physically impossible to kill Roman Ushnevych from the Berkut barricade because he took along with several other protesters behind a concrete wall. It was rational for the protesters to hide behind this concrete wall to protect themselves from presumed danger from the Berkut and to leave this cover after realizing following his killing that the shooting was from the Maidan-controlled areas behind or on the sides (Video A, 33:06).

Videos and photos show bullet holes that appeared in shields of Dmytriv and a protester right in front of Dyhdalovych, and helmets of Parashchuk and Roman Huryk match locations and top-to-bottom directions of wounds. They all point to shooting from the top part of the Bank Arkada and not the Berkut barricade. A protester, who was filmed approaching Dyhdalovych during his killing, said that he saw a sniper on the roof of Bank Arkada and that Dyhdalovych was killed by a sniper from this building. During the massacre, other Maidan protesters also pointed to snipers on Bank Arkada (see Video A and D).

The SITU model of shooting of the first three protesters claimed that they were shot from the Berkut barricade shifted the wound locations from sides and back to front and made their steep directions practically horizontal, contrary to the exact locations of the wounds in the forensic medical examinations and videos. The Berkut lawyer at the Maidan massacre trial stated that the on-site investigative experiment, which was conducted by government forensic experts with the participation of a Maidan victims' lawyer, determined that the gunshot direction was from Bank

Figure 1. The visual reconstruction of shooting at Maidan protesters and Western, Polish, and Russian journalists during the Maidan massacre in Ukraine: a view from a Berkut barricade.



Arkada. He said that Parashchuk was in a blind zone of the Berkut barricade, and that the on-site investigative experiment did not consider this gunshot direction. The same Maidan victims' lawyer commissioned the SITU architectural company model with the fabricated results (Video D, 05:09).

In contrast, Berkut lawyers and the government investigation determined that the time and direction of killing a Berkut special company member at 9:16 am match shooting by a protester from a hunting rifle in photos and in a video that shows him running away to cover behind the protesters (Video A, 18:27). This investigation found that the Berkut policeman was killed by pellets from a similar Maidan direction.

In essence, the content analysis reveals that prosecution, like numerous media reports, claimed that invisible police shot these protesters from invisible weapons. The lack of such literally smoking gun of the Berkut policemen visible at the time, place, and direction of killings and wounding of the absolute majority of the Maidan protesters is "the dog that did not bark." Such an absence of a reaction that was supposed to happen but did not occur represents revelatory evidence.

Similarly, the SITU model failed to show that the specific times and directions of Berkut shooting coincided with the times of killings and wounding of specific Maidan protesters. Although the SITU model site contains precisely synchronized videos using computer software, these videos are shown separately.¹⁹ Since omitting such clear proof of the massacre of specific protesters by Berkut would have been irrational, the failure to show such evidence confirms that it does not exist.

In some cases, the specific time of a gunshot from the Berkut policemen coincided with the killing or wounding of a specific protester. However, in all these cases, the Berkut Kalashnikovs were aimed above, below, or beside these protesters, and these gunshots coincided with the sounds of other gunshots of different volumes and kinds. This means that while unintentional shooting of some protesters by the Berkut police from ricochets cannot be completely excluded based only on videos, there is also evidence of their shooting by snipers from other locations.

For example, content analysis shows that the killing of Bohdan Solchanyk coincides with a gunshot by a Berkut policeman in the ground direction several meters in front of this protester, but it also coincides with another quieter gunshot. A steep wound direction in the forensic medical examination and various evidences that snipers in the Maidan-controlled Hotel Ukraina and Zhovtnevyi Palace were shooting and killing protesters near Solchanyk around the same time, such as Sayenko, suggest that he could have been shot by such a sniper (Video A, 15:52).

The bullet holes identified in government forensic expert reports, videos, and photos from the directions of Hotel Ukraina and other Maidan-controlled buildings are in the areas, heights, and directions that match the shooting of the protesters. Visual reconstruction based on similar data shows that the Berkut police and Omega were generally shooting above protesters on the second and higher floors of the Hotel Ukraina and in electric poles, a flower box, and trees. It also shows that they did not target Maidan protesters because of the lack of bullet holes on the first floor of Hotel Ukraina, which was located behind several dozen protesters who were killed and wounded in that area. Forensic examinations by government investigators did not report a single bullet hole on the hotel's first (ground) floor that was located at the height of the protesters (Photo 1).

Various videos and photos show snipers and spotters in Hotel Ukraina and Zhovtnevyi Palace during the massacre of the protesters and more than 80 testimonies about such snipers during the massacre itself. They also showed that these buildings were controlled by Maidan forces at that time. There were protesters, including armed ones from the far-right linked special Maidan company, inside and outside of these buildings within or around the same time, and on the same floors and the roof that snipers were filmed or reported by several hundreds of protesters and journalists during and after the massacre (see Video A).

For instance, a Ukrainian ICTV video showed at 10:25 am a sniper hiding behind the curtains of a window on the 11th floor of Hotel Ukraina and firing in the direction of Maidan protesters. An ICTV reporter stated in this video that snipers from Hotel Ukraina were shooting the advancing protesters on the back. A BBC video showed a sniper firing at 10:28 am in the direction of the BBC television crew and the protesters there from an open window on the same 11th floor of the hotel, and the protesters running for cover and shouting “snipers” while pointing towards the hotel. The BBC correspondent in his news report and in his tweet identified the shooter as having a green helmet worn by Maidan protesters. The government investigation revealed that one of the far-right Svoboda leaders lived in a hotel room at the time of the massacre (see Video C, 06:23). A Maidan protester from this BBC video testified at the trial that he was told by other protesters that this was “our sniper.” He said that he saw a sniper in another Hotel Ukraina room window, giving visual signs to the protesters to avoid revealing these snipers (Video C; Katchanovski, 2023).

Just a few minutes before this, CNN and Spilno TV videos were recorded on the same 11th floor voices of a group of Maidan protesters talking about searching for positions to shoot. (See Video A, 52:14) The Spilno TV reporter said in his online stream that these were armed Maidan protesters, in particular, with Kalashnikovs. He testified that the same armed Maidan group was entering the same hotel room on the same 11th floor around the time when he streamed from this room around 9:35 am (Katchanovski, 2023). This is evidence that the Maidan group members either included snipers who shot the Maidan protesters, or that they regarded snipers who shot the protesters, specifically during the same time and from the same Hotel Ukraina floor, as not hostile and therefore did not stop them from massacring the protesters.

At 9:10–9:11 am, a few minutes after the killing of several protesters, an announcer on the Maidan stage publicly warned the protesters about two to three snipers on the pendulum floor of the Hotel Ukraina. This matches the 11th floor facing the massacre area shortly before, during, and shortly after that time. Similar warnings concerning snipers in this hotel, in particular that they kill protesters, were relayed from the Maidan stage several times during the massacre. Such warnings were also made about snipers in Zhovtnevyi Palace when it was under the control of Maidan protesters (Video A, 26:10).

Unbroadcast segments of the most famous video of the Maidan massacre, which was filmed by the Belgian VRT News TV and revealed at the Maidan massacre trial, show two Maidan protesters luring a group of other protesters to advance towards Berkut shortly before they would be massacred there. There was no other rational reason to lead protesters there after dozen protesters were killed and many more were wounded in the same area minutes before. A protester is heard shouting to the other protesters in this group not to go ahead because snipers from the hotel were shooting [take down] all protesters together, and that there were gunshots visible from there. This video then shows a bullet hitting a tree in the direction of this group of Maidan protesters at 9:38. They looked back towards Hotel Ukraina after this shot. One of them pointed his hand towards the hotel and shouted about gunshots from the hotel, and that they shot to take down the protesters and asked the shooters there not to shoot. Several minutes later, almost all of the dozen protesters in this group, including Ushnevykh, were killed or wounded (see Video C). Six wounded protesters from this group testified to the Maidan massacre trial and the investigation that they were shot from this hotel and other Maidan-controlled buildings, witnessed snipers there, or told by other protesters about them (see Katchanovski, 2023).

Protesters were filmed wondering whether the shots were fired from this hotel during a shooting spree that left 10 protesters killed there shortly before 9:30 am. One protester said that it was necessary to go with a Kalashnikov assault rifle to check the hotel. Several wounded protesters, who identified themselves in the Maidan massacre trial in the videos in this area during this shooting spree, testified that they and other protesters were shot by snipers in Hotel Ukraina and/or witnessed them there (Video A, 26:10).

Videos show that the Maidan forces not only controlled the entrances and exits to Hotel Ukraina before, during, and after the massacre of the protesters, but also that armed Maidan groups were on the same floors that protesters and journalists identified as locations of snipers around the same time. In particular, they were filmed by BBC, CNN, and Spilne TV on the 11th floor, particularly in the room by one of the Svoboda party leaders. Snipers were reported in the room of another Svoboda leader and in another room on the same hotel floor. Many other Svoboda deputies lived on this floor, and videos showed that they stayed in the hotel during the massacre. The far right Svoboda party, a Maidan Self-Defense commander in the hotel, and the hotel staff stated that the Hotel Ukraina was seized and guarded by the Maidan forces since the end of January 2014 (Video B). In its official statement, Svoboda stated that its activists took Hotel Ukraina under their control and guard on 25 January 2014. A similar statement was made by the Svoboda leader on the Maidan stage.²⁰ A BBC video showed a leading Svoboda activist along with a few Maidan protesters guarding the entrance to the stairways and elevators in the hotel shortly after 9:51 am (Video A, 36:50).

Video A (37:52) shows a group of Maidan protesters with at least one handgun, an axe, and a long tennis bag, which is a convenient way to hide and carry weapons, breaking into a hotel room on the 14th floor of the hotel around 10:12am. French Itale, AFP, and Ukraina TV videos showed the commander and members of the far-right of the special Maidan company a group of Maidan protesters who were armed with a Kalashnikov-type firearm and hunting rifles running into the hotel at 10:18 am and then taking an elevator to the 10th floor. Among them, running was the same protester in a gas mask, who shortly before was filmed luring the group of protesters, and then returning to the hotel unharmed after they were massacred (Video A, 44:27).

The commander and a few members of this group were filmed in Ruptly and German TV videos when one of them was shooting from a hunting rifle from the 14th floor of the Hotel Ukraina at 10:20–10:22 am. Ruptly and ZDF videos showed the commander and members of the special Maidan company accompanied by one of the Svoboda leaders when at least one of them was shooting in the direction of the protesters from the same 14th floor of Hotel Ukraina and then moved to a lower floor because of the presence of journalists (Video A, 45:33). A timestamped Facebook post by a Spilno.tv reporter at 12:40 pm stated that there were snipers on the 14th floor who were shooting protesters on the Maidan. Protesters also testified that there were “snipers” on the 14th floor of the hotel.²¹

Video A, media and witness reports, and statements from the Maidan stage show that there were several searches for snipers in Hotel Ukraina by groups of Maidan protesters during the massacre from around noon until the evening of 20 February. They reported that no snipers were found, but the positions of snipers were found, and witness reports about snipers in the hotel continued despite these comprehensive searches. Video compilation A shows only members of the armed group of snipers from the special armed Maidan company not only entering the hotel at 10:16am, but also exiting it without any interference at around 11:00 am and in the late afternoon. It was rational for protesters who searched the hotel to assume that snipers were not from the Maidan units.

Similarly, Video A and photos showed Maidan protesters inside, near entrances, on the roof, and in the roof window of Zhovtnevyi Palace during the same time as announcers on the Maidan stage relayed warnings about snipers there, particularly massacring protesters. Three “snipers” on the roof of Zhovtnevyi Palace were filmed and identified as such from the Maidan stage during a wave of killing protesters at 9:59–10:00am. The ICTV showed and called the same two people on the roof “snipers.”

A Polish journalist video showed snipers on the roofs of the Main Post Office, which was then the Right Sector Headquarters, and the directly adjacent Finbank building shortly after Smolensky was killed, and a female Maidan medic was photographed and filmed as wounded in the same area of

the Maidan. A protester stated that he witnessed both of them being shot from the Main Post Office building (see Video A, 01:11:16).

Similarly, the Kozatsky Hotel was the headquarters of the Neo-Nazi Patriot of Ukraine, which joined the Right Sector during the Maidan. The Patriot of Ukraine organized and led the Azov battalion during the war in Donbas. Maidan protesters reported that there were snipers in this hotel, which was located on Maidan, for almost the entire duration of the massacre. Videos and photos show Maidan protesters inside the hotel searching for snipers (see Video A).

Videos and photos also showed that Maidan protesters were near the Bank Arkada, Horodetsky Street, and Muzeinyi Lane buildings when protesters pointed to the snipers there (see Video A). This means that it was possible for protesters, in particular armed ones, to enter these buildings and neutralize these snipers, and that it was not possible for snipers to exit the buildings without being noticed by the protesters.

Video A shows more than 80 testimonies during the massacre itself, primarily by the Maidan protesters and journalists from Ukraine and many other countries, about snipers in the Maidan-controlled buildings and areas. For instance, French TV and Belgian TV showed one protester near the hotel entrance and other protesters in the hotel lobby shouting to protesters, Svoboda deputies, journalists, and Maidan medics there about snipers in the Hotel Ukraina circa 9:46–9:50 am when the lured group of the protesters was massacred nearby. Oleksii Butorin said in a 1 + 1 interview during the massacre that eight protesters were killed from Hotel Ukraina in half an hour. He witnessed one shot from the hotel. Another protester said that he witnessed a protester next to him being killed at 10:31 am from Hotel Ukraina. Protesters at 10:25 a.m. pointed to shooting by snipers from the pendulum floor of Hotel Ukraina. This indicates either the 11th floor in the hotel wings or the 13th floor in its central part.

A female Maidan medic in a BBC video and a protester in a French photographer video pointed out the roof of the Bank Arkada as the location of snipers within 30 minutes of the killings of Dmytriv, Dyhdalovych, Huryk, and Parashchuk (Video D).

A video operator from the five kanals said that there was a sniper in the Hotel Ukraina window. A protester at 10:30 a.m. pointed to a “sniper” shooting from the 9th floor of the hotel. One protester said that another protester was killed from Hotel Ukraina when he stood near him. Two protesters stated that “snipers” on the Hotel Ukraina shot protesters in the back and also pointed out snipers in the buildings on Horodetsky Street or the Bank Arkada. The news report of the 1 + 1 TV channel stated that Maidan Self-Defense reported that snipers were shooting protesters from Kostelna Street and the Hotel Ukraina roof. An announcement from the Maidan stage reported “confirmed information” from the Maidan Self-Defense about three snipers on the Bank Arkada (see Video A).

When Serhiy Melnychuk was killed at 4:51 pm, several protesters and a Bildt journalist near him all stated that he was shot from Hotel Ukraina. A female Maidan medic on the Maidan and Spilno TV journalists inside the hotel stated the same: (Video A. 01:16:55). His wife, who was near Melnychuk during his death, testified at the trial and BBC and Hromadke TV interviews that the gunshot was from this hotel. A ballistic expert, based on the position of Melnychuk and his wound locations and directions in forensic medical examinations, made the same determination (Katchanovski, 2023).

Videos show several bullets impacting trees near Maidan from the back and sideways, which were in Maidan-controlled areas. The bullet impacts of the Berkut barricades from the same areas are also visible (see Video A, C, E). They also showed that Berkut takes cover behind these barricades and trees. This is consistent with the rational actions of protection from shooting by the Maidan snipers.

It was also rational for protesters to assume danger from the government forces' positions and take cover behind the concrete wall, trees, or behind shields from that direction. It was rational for the Berkut to shoot not the unarmed protesters but the positions of snipers in the Hotel Ukraina and warning shots at poles, trees, walls, and the ground to stop the advance of the protesters to the government positions.

Both videos and testimonies by wounded protesters, other Maidan protesters, Berkut members, and government snipers at the Maidan massacre trial, the investigation, and the media did not show systematic affective actions by the Maidan protesters, the special Berkut police company members, and government snipers during the massacre.

Videos and photos showed several open windows in the Hotel Ukraina rooms and roof windows in Zhovtnevyi Palace and Horodetsky Streets 7 and 11 buildings during the time when snipers were filmed or reported shooting the protesters from there. In contrast, there were no snipers, spotters, gunshot flashes, or open windows filmed in the government-controlled buildings during the massacre of the majority of protesters (Video A).²² There were no such specific testimonies by the protesters at that time, even though many of them rationally assumed or claimed that the snipers in the government-controlled buildings and Berkut on the ground were shooting protesters.

In their intercepted radio communications, the SBU Alfa commanders reported that hostile snipers were moving to Hotel Ukraina (Video A, 46:24). Their intercepted radio-communications show that SBU Alfa snipers were deployed in the Cabmin building only after 10:30am, attempted to locate snipers in Hotel Ukraina and other Maidan-controlled buildings and did not massacre the protesters. SBU Alfa snipers radio communications reported suspected snipers or spotters on the roofs of Kinopalats and Horodetsky seven buildings.

A government sniper was filmed on the Cabmin building around noon. The synchronized videos show that the Omega unit of snipers arrived at the Berkut barricade area and received permission to use live ammunition against snipers in Maidan-controlled buildings circa 10:37am. Omega snipers then aimed their rifles not at the protesters, but at the Hotel Ukraina windows far above the protesters (Video A, 58:56).

The killings and wounding of protesters in the Instytutska Street area facing the Berkut, Alfa, and Omega positions practically stopped after the arrival of government snipers. The only exception was the killing of Oleksander Khrapachenko at 11:27 (see Video A, 01:08:17). The prosecution initially found that he was killed from Hotel Ukraina but then charged special Berkut company members on their barricade and, in 2020, an Omega sniper in the Cabmin Club with his killing. Video A shows that it was physically impossible because forensic medical and ballistic examinations revealed that he was shot by a rusted expanding hunting bullet in the back at a steep top-to-bottom direction when he faced Berkut and Omega in front of him. Black smoke covered him from the Cabmin Club and Berkut barricade. Two protesters testified that he was shot from Hotel Ukraina and other Maidan-controlled buildings. For example, Pastushok testified that Khrapachenko was shot from the left wing of Hotel Ukraina and that the protesters were shot at Hotel Ukraina when he carried Khrapachenko (Katchanovski, 2023).

A salvo of gunshots at 11:32–11:33 am matched sounds of coordinated shooting by a group of snipers in their intercepted radiocommunication that was recorded by a Maidan protester on the Maidan. One of these snipers talked about an apparent Transcaucasian accent (Video A, 01:09:19). Their open communication about shooting, in contrast to the use of code terms by the SBU Alfa snipers in their radio communication, and the Maidan Self-Defense and GPU refusals to locate and identify these snipers suggests that they were from the Maidan side.

There was no other rational reason for Maidan snipers to covertly shoot, wound, and kill Maidan protesters, other than falsely implicating the government forces in this mass killing. The presence

of snipers in numerous Maidan-controlled buildings, particularly in different areas of Hotel Ukraina, indicates that their covert deployment was organized in advance. The continuing presence and shooting by the snipers in the Maidan-controlled buildings and areas and their disappearance after the massacre was impossible without the involvement of elements of the Maidan opposition leadership, in particular, the Maidan Self-Defense. Shooting by snipers in these locations at the Berkut police, Omega unit snipers, and Alfa snipers of the Security Service of Ukraine but not in one another, and shooting by the police into locations of these snipers in the Hotel Ukraina is evidence that the snipers in the Maidan-controlled buildings were from the same party of the conflict and that this was the party hostile to the Berkut police and government snipers.

Videos show that during the massacre, several Maidan leaders, particularly leaders of the Fatherland and Svoboda parties, spoke from the Maidan stage, which faced the Hotel Ukraina and other buildings from which snipers shot Maidan protesters, in particular, killing two protesters within dozens of meters from the stages before and after speeches by the Maidan leaders from the stage.²³

Similarly, many members of parliament from Svoboda were inside and near the hotel during the entire massacre. In particular, a video by a Maidan activist and their own statements revealed that the Svoboda deputies were on the 11th floor, including in their own rooms at the very time when snipers were located on this floor, including in the room of one of the Svoboda deputies, shot Maidan protesters.²⁴ For example, the GPU investigation revealed in 2015 that two Svoboda deputies lived in hotel rooms located next to another Svoboda deputy room, from which, as the BBC and ICTV videos and testimonies of the BBC journalist and Maidan protesters show, snipers shot at the BBC television crew and Maidan protesters. One of the Svoboda leaders was admitted in 2015 that he was filming the massacre from a room located next to the Svoboda deputy room with the snipers.²⁵ Svoboda deputies did not warn Maidan protesters and foreign journalists, in particular, those who were shot by snipers located in this hotel, including on their floor and their neighboring rooms, or were in the lobby of the hotel at that time. Such actions by these Maidan leaders and Svoboda deputies suggest that they did not fear snipers, who were shooting ordinary protesters in the same locations, in particular, from Hotel Ukraina.

Such seemingly irrational behavior of the Maidan leaders and far-right Svoboda deputies turns out to be rational if they knew that these snipers were not from a government or any other hostile force but from the Maidan or other friendly covert force and would not shoot the Maidan leaders on the stage and Svoboda deputies in the Hotel Ukraina. The same concerns the failure of the snipers to target Maidan leaders on the stage and Svoboda deputies on the 11th floor of Hotel Ukraina.

The analysis of videos, photos, forensic examinations by government investigators, and reports by journalists in the media and social media concerning the locations of these Hotel Ukraina rooms and timing of the shooting by journalists from ABC News (US), ABC (Australia), ARD (Germany) twice, the Associated Press (US), BBC, TVP (Poland), RT (Russia), and Sky News (UK) were also shot at by snipers from Maidan-controlled buildings and areas, in particular, the Right Sector headquarters, the Music Conservatory, and the Bank Arkada. In contrast, such evidence suggests that a ricochet that hit a Ruptly reporter on the top floor of Hotel Ukraina was from Berkut police shooting that targeted snipers in Hotel Ukraina (see Video E).

All the specific video and audio evidence examined in this section concerning snipers in the Maidan-controlled buildings massacring the police and protesters is independently corroborated by other evidence examined in the following sections.

The Maidan massacre was immediately attributed to government snipers and the Berkut police by the Maidan opposition, Western leaders, and the media in Ukraine and the West. The far-right commander of the same special Maidan company, whose snipers shot at the police from the Music Conservatory building and then at both the police and the protesters from the Hotel Ukraina, called

from the Maidan stage on the evening of 21 February 2014 to reject a signed agreement, which was mediated by foreign ministers of France, Germany, and Poland and a representative of the Russian president. A video of his speech shows that he issued a public ultimatum for President Yanukovich to resign at 10:00 am the next day, justified it by blaming Yanukovich and his forces for the massacre, stated that his Maidan company was responsible for the turning point of the Euromaidan, and threatened an armed assault if Yanukovich would not resign.²⁶ The commander of the Maidan Self-Defense said that this ultimatum was a decision by “institutional bodies of the Maidan” and that it was adopted by a military council set up by the Maidan Self-Defense and the Right Sector on 21 February 2014.²⁷

The Maidan opposition immediately after the massacre called the Maidan protesters, who were killed on 20 February and earlier in Kyiv and Khmelnytskyi, the “Heavenly Hundred.” Many protesters and other people, who were not even on the Maidan and died from illnesses and other causes, were included in the “Heavenly Hundred” to bring the number of victims to 100. The UN report revealed in 2016 that at least 25 protesters and other persons, who were included in the “Heavenly Hundred,” were not killed in the Maidan during the Euromaidan but died from illnesses, suicides, accidents, and other such causes.²⁸ Immediately after the Maidan massacre, Western governments blamed the Yanukovich government and his forces for this mass killing, and recognized the new government formed by the Maidan opposition.

The Maidan massacre undermined the legitimacy of Yanukovich as president of Ukraine and the legitimacy of the incumbent government, police, and security forces and their monopoly on the use of force. The massacre prompted a part of the Party of Regions deputies to leave their faction and support the Maidan opposition and the parliament vote on 20 February to withdraw government forces from downtown Kyiv and subsequent votes to dismiss then President Yanukovich and his government, even though this was unconstitutional.

6. Testimonies by over 300 witnesses and 14 self-admitted Maidan snipers

The videos of snipers in the Maidan-controlled buildings shooting the police and protesters are generally consistent with testimonies in the media and social media about such snipers by over 300 witnesses, including over 100 video testimonies in Video B.

Two leaders of the far-right Svoboda party stated in their separate interviews that a Western government representative told them and other Maidan leaders a few weeks before the massacre that Western governments would turn on the Yanukovich government after casualties among protesters would reach 100 (Braty, 2017, p. 94). Such specific conditionality represented a moral hazard of the state repression backfire because it created rational incentives to “sacrifice” 100 protesters and attributed their killing to the government forces. The protesters killed were called Heavenly Hundred immediately after the massacre. Protesters and people who were not even on the Maidan and died from illnesses or other causes were included to bring the number of victims to 100.

The Western governments Almost immediately after the Maidan massacre blamed the Yanukovich government and his forces for this mass killing, and recognized the new Maidan government. Biden (2017) in his memoir described making a call to Yanukovich “when his snipers were assassinating Ukrainian citizens by the dozens” to tell him to “call off his gunmen and walk away” and that “the disgraced president fled Ukraine the next day.” Yanukovich signed a deal with the Maidan opposition leaders and representatives of France, Germany, and Poland on 21 February. The deal would have kept him in office with significantly reduced power before the early presidential election. It also specified an investigation of the Maidan massacre, with international involvement. However, the deal was immediately violated by the Maidan opposition, which seized the central government offices in Kyiv, and by France, Germany, and Poland, which recognized the new Maidan government.

Moreover, 14 self-admitted members of Maidan sniper groups testified that the massacre of the police or protesters was perpetrated by the Maidan snipers. They include testimonies by seven self-admitted Georgian members of Maidan sniper groups for the Maidan massacre trial and investigation, and their interviews in American, Italian, and Israeli TV documentaries and Macedonian and Russian media. These Georgians stated that they, along with others from Georgia, the Baltic States, and Ukraine, were members of the Maidan sniper groups. They testified that specific Maidan leaders, in particular, from the Fatherland Party and the Maidan Self-Defense, and former Georgian government leaders and commanders gave them orders and firearms to massacre both protesters and the police to stop a peace deal agreed upon by Yanukovich and the Maidan leaders. They said that they then saw on 20 February 2024 Maidan snipers from Georgia, the Baltic States, and the far-right Sector-linked Ukrainian group shooting from the Music Conservatory and the Hotel Ukraina. One of them stated in a US documentary that he shot protesters from Hotel Ukraina.²⁹

Various self-styled “fact-checking” websites, the Prosecutor General Office of Ukraine, Maidan victim lawyers, and with some exceptions, the Ukrainian media claimed that these Georgians were fake or actors. They did not produce any evidence in support of such claims, apart from the absence of Ukrainian border-crossing records by these Georgians during the Maidan, or certain inconsistencies, such as a spelling error in a document. Most of these Georgians provided their names, passport numbers, Ukrainian border stamps, copies of their plane tickets to Ukraine, their photos in Ukraine or the Georgian military, and other specific evidence in support of their testimonies. They said that they had entered Ukraine before the massacre with forged passports using false names and without border control (Katchanovski, 2023). The head of the Georgian Legion admitted that the Georgian, with a spelling error in his Ministry of Defense, served as an adviser in this ministry.³⁰

The Maidan massacre trial in November 2021 admitted and showed evidence of a testimony of one of these Georgians who confessed being a member of a group of Maidan snipers.³¹ Ukrainian border guards confirmed his identity and crossed the border into Ukraine and back shortly before the start of the Euromaidan. This disproves claims by the prosecution, Maidan lawyers, BBC Monitoring, and German TV fact-checking that he was fake and never in Ukraine. He and two other Georgians testified before the Russian invasion of Ukraine at the Prosecutor General Office of Belarus upon the request of the Prosecutor General Office of Ukraine following the appeal of Berkut lawyers in the case of the killings and wounding of the police during the Maidan massacre. Three self-admitted Georgian snipers also gave written depositions to Berkut lawyers for the Maidan massacre trial, two provided notarized letters to Ukrainian courts, and offered to testify via a video link. The Armenian, Belarusian, and Ukrainian authorities confirmed the identities of four of these Georgians for trial and investigation in Ukraine (Katchanovski, 2023).

One of them was filmed on 2 May 2014 during the Odesa massacre in the Trade Union building, along with far-right-led pro-Maidan activists.³² The ex-commander of the special armed Maidan Self-Defense Company, who was named along with his father as snipers by these Georgian ex-military, and two members of his company admitted in Ukrainian media interviews, and one in a BBC interview that they shot the police from the Music Conservatory and the Maidan barricades on the morning of 20 February.

Another Georgian confessed in a protocol of his interrogation by some of the Right Sector leaders that he was hired and deployed in an abandoned building near Maidan to shoot during the massacre. He was captured after the massacre, interrogated by the Right Sector, and released by one of the Maidan leaders.³³ This is consistent with testimonies by several Maidan activists that some snipers were captured during and immediately after the massacre, particularly in Hotel Ukraina, but then released by Maidan leaders (see Video B).

There are a few hundred testimonies by witnesses, primarily Maidan protesters, in the media, social media, and the Maidan massacre trial and investigation concerning snipers in Maidan-

controlled buildings and areas during the Maidan massacre. The majority of testimonies are by direct eyewitnesses. They testified that Maidan leaders knew in advance about the massacre that snipers were located in the Music Conservatory, Hotel Ukraina, and at least 18 other buildings in the Maidan-controlled areas and shot protesters and police from there. Several Maidan protesters testified that some of the snipers were captured by Maidan protesters, but then released by Maidan leaders (Video B).

Video B contains the testimonies of over 100 witnesses concerning Maidan snipers. Eight Maidan politicians and activists publicly testified that they witnessed the involvement of specific top Maidan leaders from oligarchic parties and far-right organizations in the massacre, such as their advance knowledge of the massacre, deployment of snipers, and evacuation of snipers who were captured by Maidan protesters. They include members of the Maidan and right-sector leadership, Maidan self-defense and right-sector activists, and many Maidan protesters and Ukrainian and foreign journalists.

For example, David Zhvania, who headed a parliamentary committee at the time of the massacre and was a member of the Maidan leadership, stated that the Maidan leaders, whom he names in his video, “arranged” the Maidan massacre, that they wanted to seize power in Ukraine. He said that the Maidan opposition leaders knew in advance about the Maidan massacre and called their members of the parliament before the massacre not to go to the Maidan so that they won’t be killed (Video B, 01:07).

Nadia Savchenko, a member of the parliament from one of the Maidan parties, stated that she witnessed in the morning of 20 February an arrival of a group of Maidan protesters armed with hunting rifles near the Maidan stage and that they became members of the Ukrainian parliament after the Maidan. She also said that she witnessed as one of the Maidan leaders brought the snipers to Hotel Ukraina and that she saw gunshots from Hotel Ukraina. A right-sector sponsor and a leader during the Maidan massacre stated that he and other right-sector activists found and photographed three positions of “snipers” found that they were released by Maidan leaders. He said that these positions of the snipers were located in a building in the rear of the Music Conservatory, in an abandoned building between the Dnipro Hotel and Ukrkoopspilka buildings, and on the roof of the Ukrainian House (Video B, 11:04, 48:09).

A Belgian VRT TV reporter stated that a bullet striking a tree near protesters in his widely broadcast video, which was filmed from Hotel Ukraina, was fired from behind the protesters. An Italian photographer said that he witnessed shooting from the 5th or 6th floor of the Maidan-controlled Hotel Ukraina and that he filmed a Maidan protester who realized that the shooting was from the back. Similarly, a TVP journalist based in Hotel Ukraina during the massacre stated that he saw one of the “snipers” on the roof of Arkada and that their producer was shot from this building’s roof in his Hotel Ukraina room, judging by the direction of a bullet strike³⁴ (see Video B).

Many Maidan protesters, medics, and journalists who were filmed in the massacre areas during this mass killing also testified about witnessing snipers in the Hotel Ukraina and other Maidan-controlled buildings and areas. For example, a wounded protester stated that he and other protesters in his group did not expect that they would be shot back. He said that he saw flashes in a hotel window on the fourth floor when he fell on the ground and pointed towards a Hotel Ukraina room there. Another wounded protester said that when he was wounded, he heard a gunshot behind, and that shots came not from the front but from the back. A different Maidan protester testified that he and other protesters came under fire from Hotel Ukraina when they were evacuating the wounded protesters. He showed that the snipers shot at them from the top-left part of the hotel. Another Maidan protester showed the locations of sharpshooters in the Bank Arkada, Hotel Ukraina, and Muzeinyi Lane buildings. Another protester showed that a sniper in Hotel Ukraina shot at his group of protesters and stated that there was also a gunfire from Zhovtnevyi Palace. A Maidan medic stated that “snipers” on the roof of Hotel Ukraina shot at

the protesters in front of Zhovtnevyi Palace. An ICTV journalist said that his Ukrainian TV channel filmed this video, showing a sniper shooting from the Hotel Ukraina window. He stated that at least one of the snipers was shooting from the top floor of the hotel (see Video A and B).

A Maidan protester stated that he, along with other protesters, captured five snipers in room 211 on the second floor of Hotel Ukraina. He says that they were paid money, ordered to kill protesters, and shot from that room. He tells in the video that these snipers surrendered and laid their weapons when his group of Maidan protesters came and that they were transferred to a Maidan leader, but since then, the Maidan leaders have refused to disclose any information about them. A Maidan protester and Afghanistan war veteran said that one sniper was captured in Hotel Ukraina, but another continued to shoot afterwards. He also said that another sniper was captured in the Zhovtnevyi Palace, along with his rifle and ammunition (Video B).

A Maidan Self-Defense Commander stated that 15 “snipers” were captured on the roofs of buildings by the Maidan Self-Defense and other protesters during the entire Maidan. He said that he helped to carry one of the captured snipers to the Trade Union building for medical help. He stated that he, along with other protesters, tried to block a bus with the remaining snipers, who were evacuated along with internal troop members captured by Maidan leaders. The former district leader of the Right Sector in Kyiv suggested that the leadership of this far-right organization and one of its paramilitary units helped to remove snipers along with captured internal troop members from the Maidan in a bus. Their testimonies were corroborated by videos that showed such events (see Video B, 1:00:27 and Video A, 01:22:38).

The commanders and snipers of the Alfa SBU and the Omega Internal Troops units of snipers confirmed that they were ordered to locate snipers who shot the police and protesters and that they were deployed to their positions in the government quarter near the Maidan after the massacre was long underway. They also stated that the snipers, who shot the police and the protesters and also shot at them were located in the Hotel Ukraina, the Music Conservatory, and Zhovtnevyi Palace, and other Maidan-controlled buildings and areas (see Video B).

In contrast, there were no such testimonies by the Berkut policemen, ex-police, and SBU commanders, and ex-Yanukovich government officials admitting their own involvement or other government and government sources involved in the massacre of the protesters, witnessing such involvement, or getting such specific information from others. This includes both those charged with the massacre in Ukraine or in absentia and those who were not charged and continued to serve under the new Maidan government. Berkut policemen, Omega servicemen, and Kyiv SBU head, who were arrested and charged with the massacre, denied that they had massacred the Maidan protesters.

The absolute majority of the testimonies of wounded Maidan protesters about being shot by the Berkut police or snipers in government-controlled buildings or snipers in these buildings are not corroborated by videos, forensic medical examinations, or other evidence.

In a small minority of the remaining cases, such evidence is either absent or contradictory. For example, Oleksandr Huch. The Volhynian company of the Maidan Self-Defense Commander stated that he was shot from the Cabinet of Ministers Building. However, his position on a Norwegian TV video, which was not shown in the trial, the ricochet impact seen in this video, and his wound location and steep direction suggest that he was shot from a Muzeinyi Lane building on the left and somewhat in front of him. An on-site investigative experiment by government forensic experts, including a ballistic expert, determined that Huch was shot from a sector of fire that included the Muzeinyi Lane buildings (see Video A, 24:34).

Ivan Halamai claimed that he was wounded from the Berkut barricade. However, the locations and direction of the bullet wounds, his position in the video at the time of his shooting, and the

steep slope of the bullet in his X-ray in the upper left leg point to a gunshot from the top of the Bank Arkada and not from the Berkut barricade on a similar ground level. The forensic medical examination found that he was shot in his right buttock area from back to front with the bullet ending in his right leg significantly lower, while the videos show that he was turned by his right side towards the Berkut barricade and by his back towards the Bank Arkada (see Video A, 48:48).

Arsenii Yatseniuk, one of the Maidan leaders who became the prime minister of Ukraine after Maidan, stated during the massacre that snipers shot protesters from Hotel Ukraina.³⁵ Petro Poroshenko, another Maidan leader, stated that when he was president of Ukraine, the Maidan protesters were shot from Hotel Ukraina and the Music Conservatory. The Maidan Self-Defense head testified that sniper positions were found in Hotel Ukraina. He was a former leader of the neo-Nazi Social National Party before it was renamed as Svoboda, and he headed the Neo-Nazi Patriot of Ukraine, its paramilitary wing. Relatives of killed Maidan protesters testified that snipers in Hotel Ukraina killed protesters. While they all publicly claimed or implied, contrary to the evidence, that these were government or even Russian snipers, they admitted that not the Berkut police on the ground but snipers from these buildings, which were in fact controlled by the Maidan forces, massacred the Maidan protesters (see Video B, E).

Then, US Vice-President Joe Biden also stated in his official address to the Ukrainian parliament that “snipers on the roofs’ massacred the protesters.”³⁶ In a leaked intercepted telephone call with the EU foreign affairs head, the Estonian Minister of Foreign Affairs referred to one of the Maidan doctors, in particular Olha Bohomolets, pointing to the similarity of the wounds among the protesters and police, which served as an indication that the massacre was organized by some elements of the Maidan opposition (Video B).

Several dozens of journalists from more than dozen countries reported in the media or the social media about witnessing snipers in Hotel Ukraina and other Maidan-controlled buildings and areas, including shooting of Maidan protesters by these snipers, cited eyewitnesses among Maidan protesters about such snipers, or based their reports on such testimonies. For example, journalists from such major Western and Ukrainian media as ABC, CNN, New York Times, BBC, Guardian, ARD, Bild, Spiegel, La7, TT News Agency, TVP, 1 + 1, 5 Kanal, ICTV, Novyi Kanal, and Kyiv Post reported about witnessing snipers in Hotel Ukraina, cited Maidan protesters about snipers there, or based their reports on such testimonies. Journalists from ITV, TVP, Spiegel, 1 + 1, ICTV, and other Western and Ukrainian media similarly reported witnessing themselves or cited Maidan protesters about witnessing snipers in other Maidan-controlled buildings and areas, such as the Bank Arkada, Zhovtnevyi Palace, the Main Post Office, and Muzeinyi Lane and Horodetsky Street buildings (see Video A, B, C, E).³⁷ With just some exceptions, these reports presented these snipers in the Maidan-controlled buildings or areas as Ukrainian government snipers or implied that they were the government snipers. But soon after the massacre, with some partial exceptions, these and other major media outlets referred to snipers in these Maidan-controlled locations as “a conspiracy theory,” denied their existence, or omitted this and other evidence of such snipers.

7. Evidence from the Maidan massacre trial and investigation in Ukraine

The government investigation, the Maidan massacre trial, the Yanukovich state treason trial, and the media did not reveal any evidence of an order to massacre the Maidan protesters by then President Yanukovich and his Internal Affairs, police, and SBU heads and commanders. The same concerns “titushki” hired by the Yanukovich government or any “third force.” A former adviser to the Prosecutor General of Ukraine after Maidan stated that he saw in the Maidan investigative case no real evidence of the Yanukovich involvement in the massacre of the protesters. He said that the government-provided bodyguards testified for the investigation that they were with Yanukovich in his car motorcade during the massacre and that he was “not understanding this whole situation at all.” (Video B, 58:23).

The Prosecutor General of Ukraine and the head of its department in charge of the Maidan massacre investigation stated in the Ukrainian media that they did not find evidence of the

involvement of the Russian government or Russian snipers in the massacre.³⁸ Testimonies by then President Yanukovich, his Internal Affairs, police, and SBU heads and many commanders in the media that not they but Maidan snipers on Maidan leaders orders massacred both the police and protesters is consistent with other evidence examined in this study.

The analysis of the evidence in this study was corroborated by the evidence revealed by the Maidan massacre trial and investigation in Ukraine. It includes testimonies of the absolute majority of wounded protesters that they and other Maidan protesters were shot by snipers in Hotel Ukraina and other Maidan-controlled buildings, and testimonies by nearly 100 prosecution and defense witnesses concerning these snipers. Such evidence also includes videos presented at the Maidan massacre trial and original automatic ballistic examinations that did not match bullets extracted from the bodies of protesters killed by the Berkut Kalashnikovs (see Katchanovski, 2023).

Forensic medical examinations revealed that nearly all Maidan protesters were shot from steep directions from the sides or back, which matched the Maidan-controlled buildings and did not match the Berkut police on the ground in front of the protesters. Government ballistic experts also determined in onsite investigative experiments that many protesters were shot from the Hotel Ukraina, the Bank Arkada, Zhovtnevyi Palace, and other Maidan-controlled buildings, which are identified in this study. This analysis is also corroborated by the cover-up of these snipers, disappearance of the key evidence, such as security camera footage, many bullets, all shields and all but a couple of helmets of the Maidan protesters, and stonewalling of the investigations and trials by the Maidan governments and the far right, denials by the prosecution that there were any snipers in the Maidan-controlled buildings, and the failure to convict anyone for the massacre of the protesters and the police for almost 10 years after one of the most documented mass killings in history. The trial decision is unlikely to be based on such evidence because of political pressure, since the executive branch in Ukraine often interferes in court decisions in such high-profile cases, and the far right activists repeatedly attacked and threatened the trial (see Katchanovski, 2023).

8. Summary of the major evidence of the false-flag Maidan massacre

Major evidence of the false-flag massacre of the Maidan protesters and the police in Kyiv on 20 February 2014 is summarized and highlighted in Table 1. This table is based on evidence examined in this study, including in Video Appendixes A, B, C, D, and E, and evidence revealed by the Maidan massacre trial and investigation in Ukraine (see Table 1).

9. Conclusion

The analysis found that the Maidan massacre of the protestors and the police on 20 February 2014 was a successful false flag operation that was rationally organized and conducted by elements of the Maidan leadership and concealed groups of Maidan snipers in Maidan-controlled buildings in order to win the asymmetric conflict during the “Euromaidan” and seize power in Ukraine. This massacre was a key element in the violent overthrow of the semi-democratic government in Ukraine.

Evidence, such as content analysis of synchronized videos and testimonies of several hundred witnesses, supports the moral hazard theory of state repression backfire. This study shows that seemingly irrational mass killing of the Maidan protesters and the police on 20 February 2014, in Ukraine, turns to be rational from self-interest-based theoretical perspectives of rational choice and Weberian theories of instrumentally rational action.

The various types of evidence analyzed indicate that elements of far-right organizations, such as the Right Sector and Svoboda, and oligarchic Maidan parties, such as Fatherland, were directly or indirectly involved in various capacities in this massacre of the protesters and the police. Such a false flag massacre by its nature could have been covertly organized and successfully carried out by only a small number of Maidan leaders and snipers.

Table 1. Major evidence of the false-flag massacre of the Maidan protesters and the police in Ukraine on 20 February 2014

Summary of evidence	Source
At least 8 videos show snipers in the Maidan-controlled buildings and areas, including 6 videos of snipers identified as Maidan snipers, aiming or shooting at the Berkut police during the Maidan massacre. At least 14 videos show snipers in the Maidan-controlled buildings, including 10 videos of them identified as Maidan snipers, aiming, or shooting at the Maidan protesters. At least 26 videos of groups of armed Maidan snipers and spotters moving into, looking for, changing, or leaving shooting positions in the Maidan-controlled buildings and areas. At least 8 photos of groups Maidan snipers and spotters in the Maidan-controlled buildings and areas. A radio communication recording of a group of apparent Maidan snipers shooting, and 4 radio communications recordings of government forces concerning snipers in the Maidan-controlled buildings. Excludes 13 videos and photos of individual protesters on the ground openly aiming or shooting at the police or filmed with firearms during the massacre.	Video A, C, D; media & social media
Over 80 videos of protesters, journalists, & policemen during the Maidan massacre pointing to or testifying about Maidan snipers/snipers in the Maidan-controlled buildings.	Video A, C, D, E
Synchronized videos show that specific times of gunshots by the Berkut policemen and their aiming direction in synchronized videos do not coincide with specific times and locations of killing of at least 39 out of 49 protesters. There is lack of video data in 10 other cases of the killed protesters.	Video A; Photo 1; Maidan massacre trial & investigation; "Vysota"; SITU
Synchronized videos show 3 protesters were killed and 10 wounded before the Berkut special company started shooting. And 45 protesters were killed before Omega, SBU, and other government sniper units were deployed.	Video A; Vysota; Maidan massacre trial & investigation; SITU
Synchronized videos show several hundred different sounding gunshots when Berkut was filmed not shooting and before the arrival of government snipers.	Video A, C, D; "Vysota"
Videos, photos, testimonies, and on-site examinations by government forensic experts show snipers and spotters, including from the special armed Maidan company, in at least 20 Maidan-controlled buildings, such as the far-right Svoboda-controlled Hotel Ukraina, the Music Conservatory (far-right-linked special armed Maidan company headquarters), the Main Post Office (the far-right Right Sector headquarters, Kozatsky Hotel (neo-Nazi Patriot of Ukraine headquarters), Zhovtnevyi Palace, and the Bank Arkada.	Video A, C; "Vysota"
Videos, photos, and testimonies show control of these 20 buildings and areas of their location by the Maidan forces, including the special armed Maidan company, at the time of the massacre of the Maidan protesters and the police by snipers from these buildings and areas.	Video A, C, D; "Vysota"

(Continued)

Table 1. (Continued)

Summary of evidence	Source
At least 51 out of 72 wounded Maidan protesters, with whose shooting Berkut policemen are charged and whose testimonies were revealed at the trial, testified at the trial and the investigation that they were shot by snipers from Maidan-controlled buildings or areas (31), witnessed themselves snipers there, and/or were told by other Maidan protesters during the massacre about such snipers (33).	Video Appendix A ³⁹
Testimonies of several dozens of prosecution witnesses and relatives of killed protesters at the Maidan massacre trial and the investigation concerning snipers in the Maidan-controlled buildings and areas. Testimonies by dozens of defense witnesses concerning Maidan snipers/snipers in the Maidan-controlled buildings and areas.	Video Appendix B ⁴⁰ ; Maidan massacre trial
Testimonies by over 300 other witnesses, including over 100 video testimonies, concerning Maidan snipers/snipers in the Maidan-controlled buildings & other evidence of the false-flag massacre.	Video B; Ukrainian media, and social media
Five Maidan leaders and activists testified about advance knowledge of the Maidan massacre by specific leaders of Maidan oligarchic parties & far-right organizations.	Video B; Ukrainian media, and social media
Seven Maidan politicians and activists testified concerning specific involvement of specific Maidan leaders in the massacre of both the police and the Maidan protesters	Video B, D; Maidan massacre trial; American, Italian, Israeli, Macedonian, Russian & Ukrainian media; social media
14 self-admitted members of Maidan sniper groups testified about specific involvement of themselves and/or other Maidan snipers and/or leaders in the massacre of the protesters and/or the police, including the massacre orders.	Maidan massacre trial & investigation; American, Italian, Israeli, Macedonian, Russian & Ukrainian media; social media
Two leaders of the far-right Svoboda party stated in their interviews that a Western government representative told them and other Maidan leaders a few weeks before the massacre that the Western governments would turn on the Yanukovich government after casualties among protesters would reach 100.	Braty (2017, p. 94).
Maidan opposition and then Maidan government leaders, such as Yatseniuk, Poroshenko, and Parubii, publicly admitted that not the Berkut police on the ground but snipers from Hotel Ukraina and the Music Conservatory massacred the Maidan protesters. US Vice-president Joe Biden stated that “snipers on the roofs” massacred the protesters. In an intercepted telephone call with the EU foreign affairs head, the Estonian minister of foreign affairs referred to a testimony by the head of the Maidan doctors that elements of the Maidan opposition perpetrated the massacre.	Video B; “36 hours”
Several dozen journalists from more than dozen countries, including from ABC, CNN, New York Times, BBC, Guardian, ITV, ARD, Bild, Spiegel, La7, TT News Agency, TVP, 1+1, 5 Kanal, ICTV, Novyi Kanal, and Kyiv Post, reported in the media or the social media about witnessing snipers in Hotel Ukraina and other Maidan-controlled buildings and areas, including shooting of Maidan protesters by these snipers, cited eyewitnesses among Maidan protesters about such snipers, or based their reports on such testimonies.	Video A, B, C, D, E; Chivers; media; social media

(Continued)

Summary of evidence	Source
No testimonies by the Berkut policemen, ex-police and SBU commanders, and ex-Yanukovich government officials admitting involvement in the massacre of the Maidan protesters, witnessing such involvement, or getting such specific information from others.	Maidan massacre trial & investigation; Katchanovski (2023); media; social media
No witness testimonies about specific involvement of Yanukovich, his government ministers, commanders, in the massacre of the protesters, including their advance knowledge and massacre orders. A former adviser to the Prosecutor General of Ukraine stated that there was no real evidence of the Yanukovich involvement in the massacre in the Maidan investigative case and that his government-provided bodyguards testified that during the massacre Yanukovich was not understanding what was going on.	Maidan massacre trial & investigation; media; social media; Video B
Onsite investigative experiments with government forensic ballistic experts determined that at least 16 specific Maidan protesters were killed or wounded and that 2 German ARD TV journalists were shot at from Maidan-controlled buildings or areas.	Video F; Maidan massacre trial & investigation; Katchanovski (2023)
Prosecutor General Office of Ukraine investigation determined based on investigative experiments and their testimonies that almost half of protesters (77 out of 157) were wounded from other sectors than the Berkut police and did not charge anyone with their shooting.	Maidan massacre trial & investigation; Katchanovski (2023)
The GPU stated in March 2014 that its investigation identified snipers who massacred the Maidan protesters, identified their locations, and seized their weapons, and that foreigners were investigated in the involvement of the massacre. The GPU stated in April 2014 that its investigation found that protesters were shot with a Simonov “sniper rifle” from Hotel Ukraina. An International Advisory Panel of the Council of Europe report in 2015 revealed that the official investigation in Ukraine had evidence of killing of at least 3 Maidan protesters from Hotel Ukraina or the Music Conservatory and that at least 10 other protesters were killed by “snipers” from rooftops of buildings. But the GPU investigation denied that there were snipers in Maidan-controlled buildings and did not investigate them despite overwhelming evidence.	Ukrainian media; Katchanovski (2023)
The GPU investigation determined that the government snipers did not massacre the Maidan protesters with the exception of an Omega sniper, who was charged in 2019 with killing of one protester but was released by a court because of lack of evidence. Two protesters testified that he was shot from the Maidan-controlled buildings when he faced the government positions. Forensic examinations by government experts found that he was killed by a rusted expanding hunting bullet in the back from a steep direction from a Maidan-controlled building.	Maidan massacre trial & investigation; Katchanovski (2023); media
Forensic medical examinations by government experts showed that nearly all protesters were shot from the top, the back, or from the side while facing the Berkut police on similar ground level.	Maidan massacre trial & investigation; Katchanovski (2023); Video D

(Continued)

Table 1. (Continued)

Summary of evidence	Source
Bullet holes identified in government forensic expert reports, videos, and photos from directions of Hotel Ukraina and other Maidan-controlled buildings are in the areas, heights, and directions that match the shooting of the protesters. Bullet holes identified in government forensic expert reports, videos, and photos from Berkut and government snipers directions are located above protesters in Hotel Ukraina and in electric poles, flower boxes, and trees.	Photo 1; Maidan massacre trial & investigation; Katchanovski (2023)
No evidence of an order to massacre the Maidan protesters by President Yanukovich and his Internal Affairs, police, and SBU chiefs and commanders.	Maidan massacre trial & investigation; Katchanovski (2023); media
All evidence combined or at least one type of evidence, such as videos, testimonies, and forensic medical and ballistic examinations by government experts, point to killing of all 49 Maidan protesters and wounding of at least 149 out of 157 protesters by snipers from Maidan-controlled buildings. Ricochets from gunshots by Berkut police cannot be completely excluded in two cases of killed protesters. There is lack of data in 7 cases of wounded protesters. Evidence shows that wounding of a female Maidan medic was staged.	Video A, B, C, D, E; Maidan massacre trial & investigation; Katchanovski (2023)
There are no videos, photos, or specific corroborated testimonies concerning snipers from any third force. The government investigation in Ukraine has not found any evidence of involvement of Russian or any other third force snipers in the Maidan massacre.	Maidan massacre trial & investigation; media; social media
Forensic ballistic examinations determined that one protester was killed from a hunting version of Kalashnikov machine gun, 4 by pellets, and two by expanding hunting bullets, while 19 protesters were killed by 7.62x39mm caliber bullets which match calibers of hunting versions of Kalashnikovs, Simonov carbine, or AKMS Kalashnikov assault rifles.	Maidan massacre trial & investigation; Katchanovski (2023)
A forensic ballistic examination conducted by government institute experts on the prosecution request with use of an automatic computer-based IBIS-TAIS system in 2015 found that bullets extracted from killed protesters, trees, and Hotel Ukraina rooms did not match police database of bullet samples from any 7.62x39 caliber Kalashnikov assault rifles of members of the entire Kyiv Berkut regiment, including the special Berkut company charged with the massacre of the protesters.	Maidan massacre trial & investigation; Katchanovski (2023)
Disappearance of almost all shields and helmets of killed and wounded protesters, many bullets extracted from bodies or objects, several trees with bullets and/or bullet holes, recordings of live online streams, web cameras and security cameras showing the massacre and the Maidan-controlled buildings and areas.	Maidan massacre trial & investigation; Katchanovski (2023); media
Cover-up & tampering with evidence such as unexplained reversals of testimonies of many wounded protesters concerning snipers in the Maidan-controlled buildings and reversals of some 40 previous forensic examinations of bullets. Bullets of many killed and wounded Maidan protesters without any documentation or other chain of custody appeared, disappeared, changed size, shape, and packages, or were not sealed.	Maidan massacre trial & investigation; Katchanovski (2023)

(Continued)

Summary of evidence	Source
Two out of five Berkut policemen charged with the Maidan massacre were released by the trial judges because of the lack of evidence. All five Berkut policemen were exchanged to Donbas separatists. Two of them returned to face the trial.	Maidan massacre trial; Katchanovski (2023); media
Nobody is convicted or under arrest for the Maidan massacre of the protesters and the police for almost 10 years after the massacre. The Maidan massacre investigations & trial were stonewalled by the government. The far-right attacked and threatened the Maidan massacre trial.	Maidan massacre trial & investigation; Katchanovski (2023); media

The study shows that concealed armed groups of Maidan snipers, based in particular in the Music Conservatory and the Hotel Ukraina, started the massacre in the early morning on 20 February by targeting Berkut and internal troop units on the Maidan itself with live ammunition fire, inflicting their mass casualties, and forcing them to retreat. The armed Maidan groups, in particular the same ones, massacred the unsuspecting Maidan protesters from concealed positions in more than 20 Maidan-controlled buildings and areas, in particular Hotel Ukraine, Zhovtnevyi Palace, and Bank Arkada.

Content analysis of synchronized videos, audio recordings, and photos, and analysis of various publicly available evidence showed that killed and wounded policemen and at least the absolute majority of 49 killed and 157 wounded Maidan protesters were massacred by snipers in Maidan-controlled buildings and areas. The content analysis shows that at least eight videos filmed snipers in Maidan-controlled buildings and areas aiming or shooting at the Berkut police during the Maidan massacre. Their and other Maidan snipers' admissions, witness testimonies, and content analysis revealed that six of these videos show Maidan snipers, in particular, from the far-right-linked special armed Maidan company. Snipers in Maidan-controlled buildings aimed at or shooting Maidan protesters are filmed in at least 14 videos. They included 10 videos in which these snipers were identified as Maidan snipers by Maidan protesters, journalists, content analysis, and other evidence. At least 26 videos show groups of armed Maidan snipers and spotters moving into, looking for, changing, or leaving shooting positions in Maidan-controlled buildings and areas. There were also more than 80 videos of protesters, journalists, and policemen during the Maidan massacre, pointing to or testifying about Maidan snipers or snipers in the Maidan-controlled buildings. This is consistent with the audio recordings of a group of such snipers shooting on commands.

The statement by the far-right Svoboda party, videos, and testimonies by the Maidan self-defense commander, Maidan protesters, Ukrainian journalists, and the Hotel Ukraina staff show that this hotel was guarded and controlled by the Maidan opposition, specifically Svoboda, before, during, and immediately after the massacre of the protesters and the police by snipers located in this hotel. Similar evidence shows control by the Maidan opposition of other buildings and areas from which snipers shot protesters and police.

Several hundred witnesses were also reported in the media and social media snipers in Hotel Ukraina and other Maidan-controlled buildings during the massacre. Eight Maidan politicians and activists publicly stated that they witnessed the involvement of specific top Maidan leaders from oligarchic parties and far-right organizations in the massacre, such as their advance knowledge about the massacre, deployment of snipers, and evacuation of snipers who were captured by Maidan protesters. This is consistent with other evidence, such as testimonies by 14 self-admitted members of Maidan sniper groups, particularly from a far-right-linked covert Maidan company and Georgia.

Synchronized videos show that specific times and directions of shooting by the Berkut policemen did not coincide with the specific times and directions of shooting of specific protesters. A long German ARD TV video, which simultaneously captured the killings and wounding of protesters and the positions of the Berkut Police, also shows this. This visual evidence alone shows that the Berkut policemen, who were charged with the massacre of the protesters, did not massacre at least the absolute majority of killed and wounded Maidan protesters.

The videos reveal snipers in the Maidan-controlled buildings and show that Maidan protesters were lured and then massacred by snipers from such Maidan-controlled buildings as Hotel Ukraina. The study also showed that Western, Polish, and Russian journalists during the Maidan massacre were shot by snipers located in Maidan-controlled buildings.

There is no specific evidence that Yanukovych or his ministers and commanders ordered or were involved in other ways in the massacre of Maidan protesters. Bullet hole locations showed that Berkut policemen were mostly shooting above and in front of the Maidan protesters, particularly above the protesters on the second and higher floors of Hotel Ukraina, which was the main location of the snipers, and in trees, poles, walls, and the ground. Evidence, such as videos and testimonies, also shows that American, British, German, Polish, and Russian journalists were shot at by snipers located in Maidan-controlled buildings. This study also provides a rational explanation for the failure of the Ukrainian government investigation to find and prosecute those directly involved in this mass killing and falsify the investigation.

There was no evidence of any “third-force snipers. Several Georgian self-admitted members of sniper groups testified in the media and for the Ukrainian trial and investigation that they and other Georgian and foreign snipers received orders from the Maidan opposition and ex-Georgian leaders.

The findings of these studies are corroborated by evidence from the Maidan massacre trial and investigation in Ukraine. Such evidence includes testimonies of the absolute majority of wounded Maidan protesters that they and other protesters were shot by snipers in Hotel Ukraina and other Maidan-controlled buildings, and testimonies by nearly 100 prosecution and defense witnesses concerning such snipers. The evidence also includes videos presented at the trial, findings of forensic medical examinations that almost all the protesters were shot from steep directions from the sides or the back, determinations by government ballistic experts that many protesters were shot from Hotel Ukraina and other Maidan-controlled buildings, and initial ballistic examinations that did not match bullets extracted from the bodies of killed protesters to the Berkut Kalashnikovs. The cover-up of the snipers and the key evidence and stonewalling of the investigations and trials by the Maidan governments and the far right, the denial of the prosecution that there were any snipers in the Maidan-controlled buildings, and the failure to convict anyone for the massacre of the protesters and the police for almost 10 years years after one of the most documented mass killings in history also corroborate this study. However, the trial decision is not likely to be based on such evidence because of the political pressure and far-right attacks and threats against the Maidan massacre trial.

This study also shows visually, based on synchronized videos, bullet hole locations in shields and helmets, wound locations and directions in forensic medical examinations, an on-site investigative experiment by government experts, and testimonies of eyewitnesses among Maidan protesters, that the SITU architecture model produced for the Maidan victims’ lawyers misrepresented locations of the wounds and directions of the gunshots that killed three protesters.

The denial of the false-flag Maidan massacre of the protesters and the police in spite of the overwhelming evidence is generally politically motivated. This crucial case of political violence was misrepresented for political reasons by politicians, by the media, with some notable exceptions, and by Wikipedia.

Consistent with the proposed moral hazard theory of state repression backfire, this false flag mass killing produced public backlash against the incumbent Yanukovich government and its forces, which were immediately blamed by the Maidan opposition, Western governments, a part of the ruling party, and Ukrainian and Western media for ordering and perpetrating this massacre. The condition reported by Maidan leaders, including the far-right Svoboda party leaders and a Western government representative before the massacre that the Western governments would turn on the Yanukovich government after casualties among protesters would reach 100, representing a moral hazard of the state repression backfire because it created rational incentives to the Maidan leaders to “sacrifice” 100 Maidan protesters and attribute their killing to the government forces. The killed protesters were called Heavenly Hundred immediately after the massacre, and protesters who died from illnesses and people who were not on the Maidan were included to bring the number of victims to 100. Such information on Western involvement and the de facto backing of the violent undemocratic overthrow of the Ukrainian government by means of the Maidan massacre and the misrepresentation of this massacre by the Western governments, despite the evidence, including in the phone call between the Estonian foreign minister and the EU foreign affairs chief, that this mass killing was perpetrated by the involvement of the elements of the oligarchic and far-right Maidan opposition, requires further research.

This false flag killing of the protesters and police, along with several assassination attempts that followed, led to Yanukovich fleeing Kyiv and then Ukraine and to the violent overthrow of the Ukrainian government. The false-flag massacre was a key part of the violent undemocratic overthrow of the government in Ukraine and a major human rights violation and crime that remained unpunished for nearly 10 years despite the overwhelming publicly available evidence. The massacre of Maidan protesters and the police on 20 February 2014 was a tipping point in the conflict that spiraled into other major conflicts in Ukraine and conflicts between Ukraine and Russia and between the West and Russia, in particular, the Russian annexation of Crimea, the war in Donbas, the illegal and devastating Russian invasion, and the war with Ukraine, which also became a dangerous proxy war between the West and Russia.

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Notes

1. Voltaire. (1817). *Complete works of Voltaire: Philosophical Dictionary*. Chez Th. Desoer, p. 788. There was a Maidan protester playing his trumpet during the Maidan massacre. He came under live ammunition fire from the snipers in the Maidan-controlled Hotel Ukraina (see Video A).
2. Earlier versions of this paper were presented at the Annual Meeting of American Political Science Association in San Francisco, September 3–6, 2015, and “The Regimes and Societies in Conflict: Eastern Europe and Russia since 1956” conference by Institute for Russian and Eurasian Studies at Uppsala University and British Association for Slavonic and East European Studies in Uppsala, Sweden, September 13–14, 2018. I am thankful to

anonymous reviewers for their comments and suggestions.

3. The Maidan massacre was misrepresented by several dozen identical or nearly identical English-language websites on all major social media (Facebook, Twitter, Instagram, VKontakte, YouTube, Reddit, etc. and various forums, such as Ukrainska Pravda forum, and also on Wikipedia. Such use of multiple fake accounts and pages to mislead people is unauthentic compared to typical social media users and suggests that this was an organized disinformation campaign with likely involvement of Svoboda. The text of comments posted by Svyatoslav Gut, a far-right immigrant activist linked to Svoboda, under Ukrainska pravda articles concerning the Maidan massacre investigation using his personal Facebook account is basically identical to the idiosyncratic text of these social media accounts and online forums, and bot and troll comments, and to the first and last name and the content of a fake ResearchGate page (see Eks-okhoronets’ Yanukovicha: Pershyi napad buv 19 liutoho 2014 roku. *Ukrainska Pravda*, 2018, May 4, <https://www.pravda.com.ua/news/2018/05/4/7179458>; Slav Gutt, ResearchGate, <https://www.researchgate.net/profile/Slav-Gutt>). Similarly, the same Wikipedia editors who deliberately misrepresented the Maidan massacre and whitewashed the involvement of the far-right in this massacre also whitewashed in various Wikipedia articles the contemporary and historical far-right in Ukraine, including open neo-Nazi organizations and the Organization of Ukrainian

- Nationalists and the Ukrainian Insurgent Army, their collaboration with Nazi Germany, their ideology and leaders, their “Glory to Ukraine” greeting, and their involvement in the mass murder of Jews, Poles, and Ukrainians. Such editors included Nangaf, Wise2 (Slav70), Bobfrombrockley, My Best Wishes, and Volunteer Marrek. The last four were identified in various publications and online sources, respectively, as the same far-right Svoboda-linked activist Svyatoslav Gut, Ben Gidley, Andrei Lomize, and Radek Szulga. The last two were also identified as involved in the Wikipedia’s intentional distortion of the Holocaust in Poland (See Grabowski & Klein, 2023).
4. “Monitor,” No 660, ARD, 10 April 2014, <https://www.youtube.com/watch?v=xrj3x41eD0>.
 5. Gabriel Gatehouse, “The untold story of the Maidan massacre,” *BBC News*, 11 February 2015, <http://www.bbc.com/news/magazine-31359021>.
 6. “Romanian Ex-President Iliescu Indicted For ‘Crimes Against Humanity.’” *RFE/RL*, December 21, 2018, <https://www.rferl.org/a/romanian-ex-president-iliescu-indicted-for-crimes-against-humanity-/29669414.html>.
 7. Video A, <https://youtu.be/1RNCNQpeTqI>; Video B, <https://youtu.be/z0IPwD17WQw>; Video C, <https://youtu.be/epCZkgUIZ2A>; Video D, <https://youtu.be/GSIFBOPJAos>; Video E, <https://youtu.be/zfSETdAA8No>.
 8. “Vysota “Zhovtnevyi” (2-e vydannia). Chastyna 2: 08:53–11:00 (20.02.2014),” 2017, <https://www.youtube.com/channel/UC4-22B1vGRQC4tjI-9Z-aLA>; “Vysota ‘Zhovtnevyi’ (2-e vydannia). Chastyna 3: 10:58–17:31 (20.02.2014),” 2017, <https://www.youtube.com/watch?v=hve1CHCgQ9c>.
 9. Ivan Katchanovski, “The Buried Maidan Massacre and Its Misrepresentation by the West” *Consortium News*, April 22, 2019, <https://consortiumnews.com/2019/04/22/the-buried-maidan-massacre-and-its-misrepresentation-by-the-west/>.
 10. Bellingcat, 2015, <https://twitter.com/bellingcat/status/566942944285175808?s=20>. The failure by Bellingcat to examine the Maidan massacre was dog that did not bark.
 11. https://mega.co.nz/#!x940EJCZ!_xgo3mOstwvatJ194GnCloJBrMlrnb4wq5L1Z7TCyA.
 12. ““Bat’kivshyna”: snajpery obstrilyuyut-mitynhuval’nykiv z daxiv Zhovtnevoho palacu j konsevatorii,” *Ukrainski novyny*, February 20, 2014, <https://ukranews.com/ua/news/232789-batkivshyna-snajpery-obstrilyuyut-mitynguvalnykiv-z-dakhiv-zhovtnevogo-palacu-y-konsevatorii>.
 13. See, for example, “The untold story,” “Ivan Bubenichik: «Ya ubil ih v zatylok, eto pravda»,” *Bird In Flight*, February 19, 2016, <https://birdinflight.com/ru/mir/ivan-bubenichik-ya-ubil-ih-v-zatylok-eto-pravda.html>; Oksana Kovalenko, “Sotnyk, yakyy perelomyv khid istoriyi: Treba bulo dotyskaty,” *Ukrainska pravda*, February 24, 2014, <http://www.pravda.com.ua/articles/2014/02/24/7016048>; Parasyuk. “Parasjuk. Sensacionnaia pravda o rasstrelah na Majdane, Kolomoiski, Portnov, Lukash.” 2020, <https://www.youtube.com/watch?v=2Z5NoQsdvo4>.
 14. “Kto nachal boiniu na Majdane. “Strana” publikuet pofamil’nyi spisok 34 chlenov “gruppy Parasyuka.” *Strana.ua*, February 18, 2020, <https://strana.today/news/250376-kto-ubival-ljudej-na-majdane-20-fevralja-2014-hoda-dokumenty-sledstvija.html>.
 15. https://mega.co.nz/#!x940EJCZ!_xgo3mOstwvatJ194GnCloJBrMlrnb4wq5L1Z7TCyA.
 16. https://mega.co.nz/#!x940EJCZ!_xgo3mOstwvatJ194GnCloJBrMlrnb4wq5L1Z7TCyA.
 17. See “Ivan Bubenichik”
 18. “Nove video rozstriliv na Maidani,” *TyzhdenUA*, 2017, <https://www.youtube.com/watch?v=gquj-Gf7cVQ>.
 19. See SITU Research.
 20. “VO ‘Svoboda’ uzyala pid kontrol” “Ukrayinu.” VO Svoboda, January 25, 2014, <https://web.archive.org/web/20140128082552/http://www.svoboda.org.ua/diyalnist/novyny/046864/>; “Maidan 25 sichnya/Oleh Tyahnybok: Borot’ba tryvaye!—Promoav na Narodnomu vichi/Revoluciya hidnosti,” 2014, <https://www.youtube.com/watch?v=JUwoaANSX5Y>.
 21. Spilnobachennia, - spilno.tv, February 20, 2014, <https://www.facebook.com/spilno.tv/posts/502902093152183>.
 22. Videos show that a roof window of the National Bank had been opened by someone shortly after 10:00am, but security cameras footage from the bank, testimonies by the security guards at the trial, and the government investigation did not reveal any evidence of snipers there during the Maidan massacre (Video A).
 23. See Video A and “Vysota “Zhovtnevyi.””
 24. “Kogda ubivali liudei svobodovtsy priatalis v nomerakh gotelia Ukraina.” 2014, <https://youtu.be/SoGsR304rk>.
 25. “Svobodivtsi zvyuvatyly vladu u politychnykh represiyakh (video).” 2015, <https://dailyviv.com/news/polityka/svobodivtsi-zvyuvatyly-vladu-u-politychnykh-represiyakh-video-24018>.
 26. “Yakshho ne bude vymohy vidstavky, my pidem na shturm—sotnyk.” 2014, <https://youtu.be/4ys0FDfXQak>.
 27. Valeriy Kalnysh, “Andrey Parubiy: Na Majdane i po nam, i po ‘Berkutu’ ‘rabotal’ rossijskij specnaz.” *RBK —Ukraina*, February 2, 2015, <http://www.rbc.ua/rus/interview/andrey-parubiy-na-majdane-i-po-nam-i-po-berkutu-rabotal-17022015132900>.
 28. Office of the United Nations High Commissioner for Human Rights. 2016. Accountability for killings in Ukraine from January 2014 to May 2016. https://www.ohchr.org/sites/default/files/Documents/Countries/UA/OHCHRThematicReportUkraineJan2014-May2016_EN.pdf.
 29. “The hidden truth about Ukraine—Part 1,” <https://www.youtube.com/watch?v=wR1NFI6TBH0>; “The hidden truth about Ukraine—Part 2,” <https://www.youtube.com/watch?v=V0rR2Fh1>; “Ploshhad” Razbityh Nadezhd (polnaja versija),” <https://www.youtube.com/watch?v=C-7xjDxFSQC>; “The Ukraine Hoax,” <https://rumble.com/v1e6fr9-the-ukraine-hoax.html>; “Advokat berkutovcev Aleksandr Goroshinskij: Esli by ‘gruzinskie snajpery’ byli fejk-kom, sud uzhe davno by ih razvenchal, provedja ih dopros.” *Ukrainski novyny*, October 31, 2019, <https://ukranews.com/interview/2245-aleksandr-goroshinskij-esli-by-gruzinskie-snajpery-byli-fejkom-sud-uzhe-davno-by-ih-razvenchal>.
 30. “Four Inaccuracies in Disinformation about Georgian Snipers Allegedly Opening Fire on Protesters Rallying on Maidan,” *Myth Detector*, 22 February 2018, <https://mythdetector.ge/en/four-inaccuracies-in-disinformation-about-georgian-snipers-allegedly-opening-fire-on-protesters-rallying-on-maidan/>.

31. "Zasidannia vid 14.12.2021 u spravi pro «Vbyvstva lyudei 20.02.2014 pid chas Evromaidanu»,» <https://youtu.be/iwaXGtd1Pe8?t=6026>.
32. "Ploshhad".
33. Sergei Zavorotnyi, "Razrushat li pokazaniya Janukovicha mifologiju maidana?". *Antifashist*, November 30, 2016, <https://antifashist.com/item/razrushat-li-pokazaniya-yanukovicha-mifologiyu-majdana.html>
34. "Po men'shei mere chetvero snajperov rasstrelivali liudei na Maidane 20 fevralia—pol'skii zhurnalist." *UNIAN*, February 24, 2014, <http://www.unian.net/politics/889175-po-menshey-mere-chetvero-snajperov-rasstrelivali-lyudey-na-maydane-20-fevralya-polskiy-jurnalist.html>.
35. "Yatseniuk vymahaye vid Yanukovycha prybraty snajperiv z hoteliu «Ukrayina»,» February 20, 2014, *Fakty*, <https://fakty.com.ua/ua/ukraine/politika/20140220-1504792/>.
36. "36 Hours in Ukraine with Vice President Biden," <https://youtu.be/PpI-gPhc538>.
37. See also, for example, "Monitor;" C.J. Chivers. Twitter, March 6, 2014, <https://twitter.com/cjchivers/status/441534777305600000>; Ian Traynor and Harriet Salem, "Snipers stalk protesters in Ukraine as Kiev hotel becomes makeshift morgue." *Guardian*, February 20, 2014, <https://www.theguardian.com/world/2014/feb/20/ukraine-snipers-kiev-hotel-makeshift-morgue>.
38. "SBU ne peredala GPU dokazatel'stva uchastiia Surkova v rasstrele Evromaidana, - Shokin," May 27, 2015, *112 Ukraina*, <http://112.ua/politika/sbu-ne-peredala-gpu-dokazatelstva-uchastiya-surkova-v-rasstrele-evromaydana-shokin-232196.html>; Alla Shershen', "Glavnyi sledovatel' po delu Maidana: Udivljaius', kak oni ostaiutsia na dolzhnostiah," May 19, 2015, *Ukrinform*, http://www.ukrinform.ua/rus/news/glavniy_sledovatel_po_delu_maydana_ya_udivlyayus_kak_oni_mogut_rabotat_na_svoih_dolghnostyah_1746015,
39. Video Appendix A. Maidan Massacre Trial & Investigation Testimonies by 52 Wounded Protesters about Maidan Snipers, <https://www.youtube.com/watch?v=p1XuVpWTaq0>.
40. Video Appendix B. Maidan Massacre Trial & Investigation Testimonies by Prosecution Witnesses about Maidan Snipers, <https://www.youtube.com/watch?v=9aLmHPZfkU0>.

References

- Anisin, A. (2019). Comparing protest massacres. *Journal of Historical Sociology*, 32(2), 258–274. <https://doi.org/10.1111/johs.12236>
- Anisin, A. (2014). The Russian bloody Sunday massacre of 1905: A discursive account of nonviolent transformation. *Politics, Groups & Identities*, 2(4), 643–660. <https://doi.org/10.1080/21565503.2014.969741>
- Bandeira, L. A. M. (2019). *The world disorder: US hegemony, proxy wars, terrorism and humanitarian catastrophes*. Springer.
- Bates, R. H., Greif, A., Levi, M., Rosenthal, J.-L., & Weingast, B. (1998). *Analytic narratives*. Princeton University Press.
- Beissinger, M. R. (2022). *The revolutionary city: Urbanization and the global transformation of rebellion*. Princeton University Press.
- Biden, J. (2017). *Promise me, dad*. Flatiron Book.
- Black, J. L., & Johns, M. (Eds.). (2015). *The Return of the Cold war: Ukraine, the West and Russia*. Routledge.
- Boyd-Barrett, O. (2016). *Western Mainstream media and the Ukraine crisis: A study in conflict propaganda*. Routledge.
- Braty, K. (2017). *Maidan. Taiemni faily*. Nora-Druk.
- Chenoweth, E., & Stephan, M. J. (2011). *Why civil resistance works: The strategic logic of nonviolent conflict*. Columbia University Press.
- Cohen, S. F. (2018). *War with Russia: From Putin & Ukraine to Trump & Russiagate*. Hot Books.
- Grabowski, J., & Klein, S. (2023). Wikipedia's intentional distortion of the history of the Holocaust. *The Journal of Holocaust Research*, 37(2), 133–190. <https://doi.org/10.1080/25785648.2023.2168939>
- Hahn, G. M. (2018). *Ukraine over the edge: Russia, the West and the "New Cold War."*. McFarland Books.
- Hess, D., & Martin, B. (2006). Repression, backfire and the theory of transformative events. *Mobilization: An International Quarterly*, 11(2), 249–267. <https://doi.org/10.17813/mai.11.2.3204855020732v63>
- Ishchenko, V. (2016). Far right participation in the Ukrainian Maidan protests: An attempt of systematic estimation. *European Politics and Society*, 17(4), 453–472. <https://doi.org/10.1080/23745118.2016.1154646>
- Ishchenko, V. (2020). Insufficiently diverse: The problem of nonviolent leverage and radicalization of Ukraine's Maidan uprising, 2013–2014. *Journal of Eurasian Studies*, 11(2), 201–215. <https://doi.org/10.1177/1879366520928363>
- Ishchenko, V., & Zhuravlev, O. (2021). How Maidan revolutions reproduce and intensify the Post-Soviet crisis of political representation. *PONARS Eurasia Policy Memo*. <https://www.ponarseurasia.org/how-maidan-revolutions-reproduce-and-intensify-the-post-soviet-crisis-of-political-representation/>
- Katchanovski, I. (2015). Crimea: People and territory before and after annexation. In A. Pikulicka-Wilczewska & R. Sakwa (Eds.), *Ukraine and Russia: People, Politics, propaganda and perspectives* (pp. 80–89). E-International Relations.
- Katchanovski, I. (2016a). *The Maidan massacre in Ukraine: A Summary of analysis, evidence, and findings. In the return of the cold war: Ukraine, the West and Russia*. J.L. Black and Michael Johns, (Eds.). Routledge.
- Katchanovski, I. (2016b). The separatist war in Donbas: A violent break-up of Ukraine? *European Politics and Society*, 17(4), 473–489. <https://doi.org/10.1080/23745118.2016.1154131>
- Katchanovski, I. (2020). The far right, the Euromaidan, and the Maidan massacre in Ukraine. *Journal of Labor and Society*, 23(1), 5–29. <https://doi.org/10.1111/wusa.12457>
- Katchanovski, I. (2022). The Russia-Ukraine war and the Maidan in Ukraine. Annual Meeting of the American Political Science Association, Montreal, September 15–18.
- Katchanovski, I. (2023). The Maidan massacre trial and investigation revelations and their implications for the Ukraine-Russia war and Relations. *Russian Politics*, 8(2), 181–205. <https://doi.org/10.30965/24518921-00802005>
- Koshkina, S. (2015). *Maidan. Neraskazannaia istoriia*. Bright Books.
- Kudelia, S. (2018). When numbers are not enough: The strategic use of violence in Ukraine's 2014 revolution. *Comparative Politics*, 50(4), 501–521. <https://doi.org/10.5129/001041518823565623>
- Kudelia, S. (2016). The Donbas rift. *Russian Politics & Law*, 54(1), 5–27. <https://doi.org/10.1080/10611940.2015.1160707>

- Kuperman, A. J. (2008). The moral hazard of humanitarian intervention: Lessons from the Balkans. *International Studies Quarterly*, 52(1), 49–80. <https://doi.org/10.1111/j.1468-2478.2007.00491.x>
- Lane, D. (2016). The International context: Russia, Ukraine and the drift to East-West confrontation. *International Critical Thought*, 6(4), 623–644. <https://doi.org/10.1080/21598282.2016.1242084>
- Mandel, D. (2016). The conflict in Ukraine. *Journal of Contemporary Central and Eastern Europe*, 24(1), 83–88. <https://doi.org/10.1080/0965156X.2016.1171011>
- Marples, D. R., & Mills, F. V. (Eds.). (2015). *Ukraine's Euromaidan. Analyses of a civil revolution*. Ibidem.
- Martin, B. (2007). *Justice ignited: The dynamics of backfire*. Rowman & Littlefield.
- Martin, M. M. (1994). Supreme court rules on statements against interest. *Touro Law Review*, 11, 179–183.
- Sakwa, R. (2015). *Frontline Ukraine: Crisis in the Borderlands*. I.B.Tauris.
- Sharp, G. (1973). *The Politics of nonviolent action: Part two, the methods of nonviolent action*. Porter Sargent.
- Spencer, M. L. G. (2018). *Stalinism and the Soviet-Finnish war, 1939–40*. Palgrave.
- Weber, M. (1978). *Economy and Society* (Vol. 1). University of California Press.
- Zarmsky, S. (2021). Why seeing should not always be believing: Considerations regarding the use of Digital reconstruction Technology in International Law. *Journal of International Criminal Justice*, 19(1), 213–225. <https://doi.org/10.1093/jicj/mqab048>